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Loudoun County Board of Supervisors, Business Meeting, Wednesday, January 21, 2026

Date Wednesday, January 21, 2026
Place Board Room, First Floor, Government Center, 1 Harrison Street SE, Leesburg, Virginia
Length 5h 52m (video)

- Official meeting video (county, Granicus): <https://loudoun.granicus.com/player/clip/8096>
- Meeting page (Granicus): <https://loudoun.granicus.com/player/clip/8096>

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Speech-to-text: whisper.cpp, model large-v3-turbo. Produced 2026-10-10. Each paragraph starts with its time [HH:MM:SS] in the meeting video.

[00:00:00] hours, it was bad. You don't know how reliant you are in computers until you don't have them anymore. Thus, we are about 10 minutes behind getting everything loaded up on Granicus and getting everything, make sure everything's out to the public correctly. So I'm going to recess this meeting for the next 10 minutes just to make sure everything is loaded up on Granicus and everything is correct. I'll come back in 10 minutes and we will go from there.

[00:00:29] So this is a 10-minute recess, but we'll be right back. Thanks.

[00:04:30] Okay.

[00:13:44] Okay, we are back from recess, and I will go to Ms. Brixman for words of inspiration or wisdom. Thank you, Madam Chair. So we are meeting on Wednesday because we had Martin Luther King Day off this week.

[00:14:06] I enjoyed attending the annual parade in Leesburg. It was wonderful, good weather, and sunny. When I think about Dr. Martin Luther King, two quotes come to mind. One of them is, injustice anywhere is a threat to justice everywhere.

[00:14:25] And the second is, and this might perhaps be my favorite, our lives begin to end the day we become silent about things that matter. And when I combine those two in my mind, I think that our lives

do begin to end the day we become silent about injustice.

[00:14:43] because injustice anywhere is a threat to justice everywhere. Please join me in the pledge. Pledge allegiance to the flag of the United States. Okay, this has been a little bit of a chaotic day because the computers went down for four hours, so everyone's running around trying to do things with pencil and paper.

[00:15:19] And so there's a lot going on in this meeting, so please bear with me. Supervisors, there's a lot of additions and deletions and immediate motions and all those types of things, So if I missed something, please catch me. I do believe the only motion -- well, not I do believe -- the only motion I'm making was sent out to you all yesterday.

[00:15:39] But there are other things going on as well. Supervisor Sains will be here around 5:15, 5:30. Supervisor Letourneau -- where is she sitting? Will be here at 4:30. Supervisor Umstad, who's -- where is she?

[00:15:55] She won't -- she will not be here this evening. Vice Chair Turner will be here around 5:30, so everyone is coming in the room. I'm going to take a point of personal privilege, there's an item on the consent agenda from Ms. Tocroni about a sign in Howardsville to make Howardsville a place, and I'll talk about that importance in just a second.

[00:16:17] But before I do that, I do want to say in the room with us tonight is a man named Thomas Reed, who is a long time Loudoun County resident. The entire effort that I started in my first term to look at privies and to make sure that everyone in our county was treated equitably when it comes to land use and zoning and where water was ran and all those types of things was because Mr. Kim Hart bought Mr. Thomas Reed's, affectionately known as Bubbles, his case to me, and that was in my first term.

[00:16:56] Mr. Reed is a stalwart of Loudoun County. He's been in the county for generations. He is a simply amazing man. If you ever have time to talk to him again, I will talk to the item in just a second, but I really cannot have Thomas Reed in the room with me and not acknowledge him. Mr. Reed, will you please stand up for us, please? Everyone turn around. He's in the back. Thank you, sir.

[00:17:26] All right, positions and deletions are as follows, it's going to take me a minute, at the request of the applicant, item LEGIE 2024-0037, Cochrane Tech ZMAP 2024-0012, Special Exception 2024-0025, Special Exception 2025-0025, Special Exception 2025-0029, Special Exception 2025-0034, Special Exception 2025-0054, and Special Exception 2025-0111 has been deferred to a future business meeting for action.

[00:18:06] Again, that's the request of the applicant themselves. The rest of these are all going to be motions to reconsider and then motions on the item. And so I have one of those. I think Supervisor Glass, you have one of those as well.

[00:18:22] I will go on and do mine right now. Madam Chair? Yeah. May I, on item 10, I believe that's to be deferred until the second meeting in February. The one we just talked about is the second meeting in February? Oh, the second meeting in February, not the first?

[00:18:39] The February 18th. February 18th meeting. So that I would be deferred to the February 18th meeting. Thank you. I left it because, yeah, okay, anyway, that's what they want. That's fine. I'm going to make the first meeting. It is a reconsideration.

[00:18:57] This was sent out to everybody, to everyone yesterday, so no one should be surprised that the reconsideration is coming. I move the Board of Supervisors reconsider its action on the Finance, Government, Operation, Economic Development Committee report for FY 2027 Budget Development Final Guidance Item of the January 6, 2026 Board of Supervisors Business Meeting to direct the county administrator to prepare the future proposed budget with an additional local tax funding added to the capital improvement program, less 20% to be allocated to the housing fund.

[00:19:27] that's the motion to reconsider motion to reconsider motion second made and seconded by miss brixman she's got to be faster but i will give that to you discussion on the motion to reconsider all in favor please say aye any opposed that motion reconsider will pass 414 mrs latour mr sainz mr umstead mr turner being off the dais i move the board of advisors direct the county ministry to prepare future proposed budgets with additional local tax funding allocated to the capital improvement program, less 20% to be allocated to the housing

[00:20:06] fund until FY 2030, which is three years. Second. Motion made and seconded by Ms. Briggsman. Okay. So we are doing everything we can to figure out how to do more in attainable housing. And I say the word attainable very specifically. I literally don't say affordable because attainable is the entire section of housing, anywhere from 0% to 30%, which is low-income housing, about 30% to about 80% to 85%, that's literally attainable housing, 85% to 100% is workforce housing, but there's also disability housing, there's senior housing, there's veteran's

[00:20:46] housing, and we're trying to figure out housing across all spectrums, as is true for the county, as is true for the country. Right now in the General Assembly, there are no less than 30 bills that are housing bills, and many of them are aimed at taking away local authority on land use and zoning. They want to do that because they do not believe that localities are serious about doing attainable housing. Now, part of that is us. We haven't been clear enough about how serious we are.

[00:21:17] The idea that we know that we're going to have excess funding, but we're not going to put that excess funding in the housing, when we are sitting at a moment where the General Assembly is about to vote to take our housing, our land use authority away, it's completely illogical to me. We know that excess funding will be there through 2030. We're not doing it further than 2030, so we're doing it for our term and then one year out, and usually that one year out, the first part of that, well, and when the new board walks in the day, the budget is barely set, so we're not locking the hands of any board supervisors in the future.

[00:21:56] These would be our budgets, but we know that housing is economic development. We know that, and if we do not want to put housing in places that don't have water, that don't have roads, that don't have fire and rescue, that don't have sheriff's department, that don't have sewer, if we don't want the generosity to tell us to just put down houses wherever they believe we should without talking to us at all then we have to be proactive in doing this ourselves and doing it right now there is literally no reason not to put money into the

[00:22:32] housing funds there's just not and it will cost us and cost every loud and taxpayer much more money and much more tax money to allow houses to go where there are no services because it would cost more for us than do have to stand up services, put school buildings in rooms, build school rooms, build roads.

[00:22:55] That will cost us more than this 20% would be on anyone's tax bill. To not vote for this is penny wise and pound foolish. Ms. Brooksman. Thank you, Madam Chair. And I really do appreciate you

bringing back this motion.

[00:23:13] So, for those who may have missed budget guidance, the county, well, I should say the board, rejected staff's recommendation that we lower the tax rate on the data center industry, basically. And what the effect of that is, we are constraining ourselves to a certain growth rate in our operating budget.

[00:23:33] So, we are going to have what the staff called excess revenue over what we are keeping as our growth rate in the operating budget. So that excess revenue, in order not to grow the operating budget, needs to go to one-time expenses.

[00:23:50] So in FY27, we were already putting 20% of that into the housing fund. And then the motion that didn't pass, unfortunately, had us doing that as policy for the next three years. So it is a great use of data center revenue.

[00:24:11] It is a great use for our housing fund to help build more attainable units. Additionally, during budget guidance, Chair Randall made a motion that our cigarette tax revenue would also go into the housing fund.

[00:24:29] And so that equates to just over six million additional dollars that will go into our housing fund, at least until we see the growth in data center revenue leveling off, which we are planning for. So when that levels off, we'll have to be making decisions about what we want to do with that excess revenue if we still have it.

[00:24:49] This also isn't a requirement if we don't have the excess revenue over what we want our growth rates to be over the next couple years. So if there's no excess revenue, it won't go in there. I have a feeling that our data center industry will still be growing over the next five to seven years, as staff predicts, and we will still be able to do this to help our housing fund and help folks be able to afford to live in Loudoun County.

[00:25:16] Thank you, Madam Chair. Hi, Mr. Letourneau. How are you? Mr. Letourneau. Thank you. So I understand we're on the reconsideration of the three years. to be clear what the because I know I think chair you weren't here for this motion the concern that several of us had was not substantive it was not about whether or not to commit 20 percent it was the notion that we were essentially giving pre-fiscal guidance for future years when in reality we will still be having to give fiscal guidance the county administrator we confirmed with the county administrator that the county administrator will still bring a fiscal guidance item and the

[00:25:55] board will have the opportunity to give whatever guidance including dedication of revenue of any kind of revenue at that time so it just seemed unnecessary to we've never done before and i don't think we should be in the habit of of essentially giving fiscal guidance for future budget years when we have no particular knowledge of what the budget situation will be in those years it may be that the board wants to do more we don't know so several of us those of us who didn't support the motion uh just said we'd rather do it the way we've been doing it and on a yearly basis the

[00:26:29] fiscal item comes we give the guidance we as you know we do the budget discussion starting in july so we have plenty of opportunity to give that guidance rather than passing a motion which in all likelihood won't have any meaning whatsoever because the board's going to redo it anyway so we just found it to be kind of not necessary and not very efficient thank you mr kirsten thank you Madam Chair. I want to associate my comments with Supervisor Letourneau, although I appreciate in large part what the

words that were said by the Chair and the message that perhaps that it sends, and I do appreciate that. I think the counter argument to that, of course, is we're doing this

[00:27:07] every year. We're funding well. If the state legislature wants to do what they want, they're going to do it. But we are doing a ton for housing. I think affordable housing and our annual budget shows that, but I agree. I think where I come down is rather than kind of giving that direction for each year, we should review that each year so that we have a better idea what our fiscal outlook is going to be on that given year rather than kind of, it's not really tying our hands because obviously we make those decisions. It's more of a policy statement I think we're making here, and I appreciate that, but I think we've made sufficient policy statement. I just

[00:27:44] think it's probably a little more sound to do it on an annual basis rather than saying we're going to do it for the next three years. I mean, why not six? Why not 10? Why not 20? But, you know, where do you draw the line? I think year by year is probably the better way to do it. Thank you. I drew the line at three. This is why these arguments make no sense at all. This, because of using that logic, we right now in this county have two cents of our tax dollar every year going to transportation. That's done. That's been broken into our budget since before I came on this board.

[00:28:16] We can do that year to year, but we don't. That fiscal guidance was given more than, what, 12 years ago, to have two cents of the tax dollar going to transportation because we're in the built roads. That's not been an issue. We have one cents right now going to housing trust funds already. The cigarette tax goes to closing cost and down payment.

[00:28:36] We've done this many, many, many, many times before, and it's already programmed into our budget. So that doesn't make any sense because if it did, all that we've ever done, we have to undo and go back and look at. So that argument falls absolutely flat. And if any board wants to come up here and change that, including all the things we have in here right now, the two cents on the tax dollar for transportation, for building roads, they can change that tomorrow.

[00:29:03] We can change that tomorrow if we want to. Every board has not just every term, but has an opportunity to look at things again. But some things you do want to program in because you know those things are important. We knew that the state nor the federal government were going to build roads fast enough for the growth in Loudoun County, so two cents was put in the tax dollars to build roads, and it's been there ever since, and it's programmed in, and it's steady money, and we know that.

[00:29:31] We know that about other things as well. So that is the same thing we've done for other items, and it's never been an issue. Why it's an issue for attainable housing, I don't know, and I don't agree that the General Assembly is going to do what the General Assembly is going to do.

[00:29:46] I think that we have to be able to say to the General Assembly, this is what we're doing. In fact, our General Assembly members have asked us to compile and send us what we've done already, which we have done that to the General Assembly and to Virginia Association of Counties.

[00:30:03] John Freeman is down in Richmond right now fighting for us on these things, and we've sent him that already. And so if that's the case, why ever have a General Assembly ledge program? If we don't think it's going to make any difference, why do we do a LEDGE program at all? So that doesn't work either.

[00:30:21] So with respect, those arguments just fall straight flat to me, people. So I'm going to call the vote. I made the motion. Supervisor Brickson second the motion. All right, please say aye. Aye. Opposed?

That motion will pass. Four, two, three, with Mr. Sains, Umstead, and Turner off the dais, Mr. Letourneau, and Mr. Kirshner voting against the motion.

[00:30:46] Okay. No, I got that number right. This next item, I think, who's the Motor Club item?

[00:31:05] Whose district is this? Is this you? Okay. You have to make a motion to reconsider. And then if you want to explain what you're doing in the motion to reconsider before you make the motion, how about you do that? Okay. All right. You want to make the motion to reconsider? Yes, madam. Okay. I do not have an actual motion, but I'd make a motion to reconsider the Commonwealth Center Motor Club CCPA 2025-0007 specs.

[00:31:41] Oh, I have a motion. Hold on. Let me get it. It's here. Okay. I move that the Board of Supervisors reconsider its action on Leji-2024-0016, Commonwealth Center Motor Club.

[00:31:58] That's the motion you're going to need. ZCPA, I almost lost where I was. ZCPA 2025-0007, specs 2024-026, specs 2024-027, specs 2024-029, and specs 2025-0133 at the January 11, 2026, Board of Supervisors public hearing.

[00:32:31] Motion is made seconded by Supervisor Bricksman. Discussion on the motion. Yes, Madam Chair. This is reconsidered. It's simply a motion to correct a technical error that regarding the size of the restaurant that the applicant had was approved for.

[00:32:53] Instead of 4,000 square feet, it is supposed to be 10,000 square feet, and both staff and the applicant agreed on that as discussed all along. Yeah, and just to add to that, it's 10,000 square feet within the building that it's sitting in already, so it's not a larger footprint.

[00:33:15] It's a scribblers error, and they put 4,000 and it meant to be 10,000, but it's already in the building. So that's why we're just trying to correct the error. right exactly make the motion please okay I just hand it to you miss all right thank you I move that the Board of Supervisors affirm the concept development plan dated November 2020 I'm sorry November 21st 2025 and corrected conditions of approval dated January 21st 2026 for legy

[00:33:51] dash 2024 dash 0016 commonwealth center motor club zcpa dash 2025 007 specs dash 2024 dash 0026 specs dash 2024 dash 0027 specs dash 2024 dash 0029 and specs dash 2025 dash 0133 provided as Attachments 2 and 3 to the January 21st, 2026 Board of Supervisors Business Meeting Action Item.

[00:34:25] Motion made and seconded by Supervisor Briggsman. Discussion on the motion. Supervisor Glass? No discussion. Anybody else? All the people say aye. Aye. Any opposed? That motion will pass 6-0-3 with Supervisor Sains. I'm setting Turner being off today's. All right.

[00:34:41] I'm going to do the consent agenda. I think we're good. It's kind of long. Any other additions or deletions that we know of? No? Okay. Item C, item 1C, contract award on call land surveying services.

[00:34:56] Item 1D, contract renewal roadway and transportation design services. Item 1E, award authority increased sports construction support services. Item 1F, conservation easement assistance program exception. Item 1G, visit loud in fiscal year 2025, restricted use transit occupancy tax fund balance request.

[00:35:16] Item 1H, countywide streetlight program. Item 1I, 24328 Marwood Drive, LCPS expansion. Item 1J, personal property tax rate for tax year 2026.

[00:35:33] Item 2A, additions and additions to the joint committee work plan. Item 3A, appointments and confirmation. Item 4, administrative items report of January 21, 2026. Item 5, rural historic villages and other historic crossroad community roadways sign installation.

[00:35:51] Item 6 Energy Innovation Forum. Item 9 CPAM 2024-0003-2024 review of the Loudoun County 2019 General Plan. The revised motion is the motion on the dais. Item 13 Board Member Initiative Aspirin Metro Station. Whoa. Is that? Wait. Okay. Item 13 Aspirin Metro Station Area Transportation Safety Studies. Before I continue with the consent agenda, we were

[00:36:28] told we would have speakers on that item and by policy if there's speakers on an item we do not put it on the consent agenda but when I walked about the day at four o'clock there were no speakers signed up yet and so let me just stop right now and check are there any speakers here for item 13 which is the Ashburn metro area transportation safety study because if so I'll pull it off the agenda until you have time to speak so are there any speakers for that item Madam Chair, I think there's someone in the room.

[00:37:00] Well, no, they need to be. Is there anyone online for that item? Because if they're not in the room and they're not online, I'm going to leave this on the consent agenda. No, Madam Chair. Okay. Item 14, board member initiative to rename Moorview Parkway as Ashburn Village Boulevard.

[00:37:15] And item 15, Legend 2024-0016 Commonwealth Center. Oh, we've done that one. Never mind. We've done that. We've done that. Sorry. So that is the consent agenda. I'll make the motion to approve. Is there a second? madam chair yes I believe there's someone on the sign-up sheet number nine

[00:37:51] okay are you sure that's who that was that because that person signed up twice for two different things I'm not sure okay are you sure okay well I'm gonna trust my colleague I will leave I will make I will revise that motion to take item 13 off the consent agenda because miss miss glass believes that there's somebody who wants to speak on the item so I'm gonna trust my colleague so that that that's that the consent agenda is all the items with the exception of item number 13.

[00:38:23] Discussion on the motion. No we no I no no I do not if somebody wants to speak I do not put on the consent agenda. Never done that. Ms. Tocroni. Thank you Chair Randall. So I do want to talk about item number five the rural historic village roadway sign installation. I want to thank general services for their help with this item while a road sign may not seem especially important to some for me and for the small rural communities i work closely with it can make a meaningful

[00:39:00] difference mr reed whose family has lived in howardsville since 1867 requested the howardsville sign though he never thought he would see it in his lifetime thank you mr reed for being here today with Mr. Hart and I'm glad we were able to make this happen in historic rural communities like these a simple sign one that acknowledges the name of the place people call home can truly make all the difference so I want to thank you Mr. Reed for being here and thanks staff item number six the

[00:39:34] energy innovation forum I'm glad this is moving forward I would like to see it happen at the end of june if possible because people start going on vacation in july thank you for inviting nvrc mw cog and neighboring municipalities i believe this energy innovation forum will establish louden as the authority on clean energy transformation our unmatched data center concentration allows us to be a leader in energy innovation so i look forward to that forum

[00:40:09] and lastly item number one j the personal property tax rates for tax year 2026 during the last budget season the board voted to reduce the vehicle property tax for tax year 26 from 415 to 309 offering

much needed relief to residents however that reduction did not apply to all personally owned vehicles vehicles powered solely by electricity hybrid vehicles and clean

[00:40:41] energy fuel vehicles had previously been separated from the vehicle category meaning the reduced rate would not have applied to them I raised this issue to the chair of the finance committee and she moved to include these ev vehicles in the tax rate reduction I want to thank the finance committee for voting to recommend that the lower tax rate be included for ev vehicles looking ahead i would like to see the reduced rate applied to all personally owned vehicles including motorcycles rvs and campers and i'll be bringing this up during the fy 27 budget

[00:41:21] discussion thank you thank you miss brixman thank you madam chair um just to dovetail off Supervisor Tacronia was going to mention that as well, that the board meant all cars when we decided to reduce the car tax. I still think that we are the only jurisdiction in the Commonwealth that is actually lowering the car tax since the General Assembly gave us authority to do so.

[00:41:45] I would like to thank my colleagues for supporting 1F, the Conservation Easement Assistance Program Exception. This is for the property where we had the unfortunate home explosion and lost one of our firefighters. So that will be entered into the conservation easement program to assist basically those who put forward monies to buy that land so another house would not be built on that land.

[00:42:12] And we have a park there now that honors Firefighter Brown. And lastly, I do want to thank staff and the Sheriff's Department for working on covering the cost of the D.A.R.E. t-shirts. This is something I've been working on, I think, since the beginning of this term.

[00:42:28] After visiting some of the Title I schools in Algonquian District, I learned that the PTAs and PTOs have a lot of difficulty raising the funds to buy the D.A.R.E. shirts for their students. And so, in my mind, in a county like Loudoun and with the Sheriff's Department like our Sheriff's Department, that we really should be making sure that all students that go through the D.A.R.E. program get their T-shirts free of charge.

[00:42:54] And so, I really appreciate staff in the Sheriff's Department working on that. That was item 2A that we'll pass tonight. Thank you, Madam Chair. Thank you, Ms. Brixman. I would associate myself with Mr. Crony's statements regarding the vehicles. Obviously, an electric vehicle is a vehicle. So we want to be able to have that tax deduction on those vehicles as well, or maybe even especially those vehicles.

[00:43:19] I do want to say about how it's feeling in other places. You know, the reason a sign is important, the reason a place is important is because in many communities across the country, but let's talk about Loudoun. There were historically, especially black communities that have been, for whatever reason, written off the books. Where Dulles Airport sits right now was an African-American community, and it was basically disbanded, and Dulles Airport was built there instead. Howardsville, Willisville, St. Louis, other places in Loudoun County

[00:43:59] have not received over the many years, not so much, but over many years, did not receive the same attention. They did not receive water and sewer. They did not receive the same roads going through their county. They did not receive the same assistance in those communities, which harmed their homes, lowered their property values, and all types of things.

[00:44:21] The fact that within the past 10 years, we are just now, we had just put in running water in bathrooms and people didn't have to go to privies anymore. Privies are outhouses. It's a nice name, but it's

still an outhouse.

[00:44:37] The fact that 10 years ago, people were going to outhouses in Loudoun County, Virginia, is a travesty. And those were almost completely happening in communities that were formerly communities of color, especially African American communities, especially poor communities.

[00:44:53] And so for history's sake and sometimes just because doing right is right, we want to make sure that people know where a place is or where a place has been that has for many reasons gone off a map.

[00:45:09] And so I very much appreciate that. Again, I very much appreciate Mr. Kim Hart and most especially Mr. Thomas Reed for all the help you've given us to tell the full history of what I really do believe is the greatest county in the country.

[00:45:28] But you can't be great if you're not going to lean into your full history. And so I appreciate that very much. All right. So that is the consent agenda discussion. All in favor of the consent agenda, please say aye. Aye. Any opposed, that motion will pass 6-0-3.

[00:45:46] All right. My comments, they're not as, I haven't done as much in the past two weeks as I usually do, so this might be going a little bit faster. Friday, January 9th, I did an interview with Governing Magazine. We are getting, we loud in, especially Mr. Turner, me too, but especially Mr. Turner, we're getting, you know, and Mr. Reiser, Mr. Buddy Reiser, we're getting so many requests about data centers. And most of the requests really are about, well, most of my answers to requests are about land use. I tell people all the time that the first time you see data

[00:46:25] centers in any Loudoun document was year 2000, and they were classified incorrectly as office use and made as a by-right office use. Now, I don't blame anybody back then because they didn't really know what data centers were or what they were going to do or how much they were going to proliferate. We know that now. But Governing Magazine is the nation's premier magazine for local government. And so I did think that it was important to grant an interview because I don't grant interviews to everybody. But to grant one to Governing

[00:46:59] Magazine was important because I think that for me, my advice to other counties is data centers are a double-edged, they're a two-sided coin, and to make sure you understand your land use before you start doing data centers.

[00:47:15] On the 12th, I had a meeting of the NACO Midsize County Caucus, of which I am a vice chair of the Midsize County Caucus. Of course, we will all be headed off to the Ledge Conference in February for NACO, the Midsides County Caucus.

[00:47:32] This is our first Ledge Conference because it's a new caucus, and we decided on the five top issues we were going to address at NACO. They are, no, the five, I'm sorry, the top four. They are housing, again, always housing, affordability and economic development, those two things are together, public safety, including, and maybe especially, the lack of volunteer firefighters in places that have volunteer firefighters, that's still been an issue, and behavior health and mental health.

[00:48:08] And so at the Ledge Conference, those will be our discussions. I am going to, once again, really encourage my colleagues to come to the Ledge Conference because I used to be able to go to the Rural Action Caucus, but now I am a member of the Midsize Caucus, and so I can't go to the Rural Action Caucus.

[00:48:28] They meet at the same time. So Mr. Sange usually goes to the large urban county caucuses. I usually go to the rural caucuses, and so do Mr. Crony sometime, but a Midsize County is a county of 250,000 to 500,000 people.

[00:48:45] Loudoun is sitting at about 450,000 people. So we really are a mid-sized county. But the things discussed, Mr. Kirshner, at the Rural Caucus are so prevalent for Western Loudoun County. One of the things we're going to discuss is water at the Rural Caucus.

[00:49:02] And so I really do encourage all of my colleagues to go to that if they can. Last week, I am, of course, as you know, in the Leadership Greater Washington cohort. We had, our last discussion was, it was a racial justice day, an organization called the Groundwater Institute spoke to us.

[00:49:26] It was actually fascinating and very helpful. I did go to some of the activities in Richmond surrounding the now governor's inauguration. I will talk about one because this one is not political.

[00:49:43] I went to a roundtable of former governors. It was Governors Kane, Governor Northam, Governor McDonnell, and Governor Allen. It was fascinating. They talked about their times being governor, what they learned, what they didn't know, what they would do different today, advice they have for the incoming governor.

[00:50:00] I did learn that Governor Allen talks a lot. Governor Northam is very funny, and Governor McDonnell is the smoothest man you've ever wanted to meet in your life. And so that was all really, really important. I want to say that we have, again, NACO Ledge Day.

[00:50:21] It's February 21st through 24th. Everyone sign up and go. We think as we sit here right now we have snow coming, but it's snow, so who knows? You know, the joke is it could be anywhere from 1 inch to 178 inches. We have no idea.

[00:50:37] Somewhere in there. But I would advise everyone to do all the stuff before the snow comes. Please know that the county government is very aware of people who are unhoused in our county. We do go out and look for people. We do know where, you know, we don't have many homeless people, but we do know where those encampments are, and we try to get them inside.

[00:50:58] Not everyone will come inside. We will do blankets and that kind of thing, people who won't come in. But everyone else, expect the snow and do all that you need to do in advance. I will respectfully say that the last snowstorm we had, a lady called me because she ran out of coffee and she had a caffeine headache.

[00:51:15] Don't call me for a coffee for a caffeine headache in the middle of a snowstorm. I cannot help you. But also remember that your intra-neighborhoods, especially most of eastern Loudoun County, your HOA is responsible for snow removal. Please remember that. VDOT, which is a state organization, is responsible for other snow removal.

[00:51:34] But I do have, and Mr. Helm Street, we do have lots of contact with VDOT. And finally, I want to say that our own Stan Rogers, who has been in that booth back there since, I don't know, when would Stan start working here?

[00:51:51] And since, I don't know how long, he is our videographer, he's the person that puts us on camera, and I always joke that Stan makes us look good, literally, or if he's mad at you, he can catch you while you're, you know, chewing or something. He is, this is his last board meeting, he is retiring.

[00:52:09] Stan is funny and kind and very, very adept at his job. And he has just done such a great job for all of us. So, Stan, this is the last full board meeting. We're going to miss you so much. Everybody turn around.

[00:52:24] Stan, wave. And thank you, Stan, so much. I told him I was going to do that. He said he wouldn't come if I was going to. And I told him if he didn't come, he wasn't going to get his last paycheck. So he had to come.

[00:52:42] Mr. Hemstreet, do you have any items today? Thank you, Madam Chair. I've got four items for this evening. The first is that I am pleased to report that the county's Emergency Communication Center has achieved the internationally recognized triple accredited Center of Excellence designation through the International Academies of Emergency Dispatch.

[00:53:00] This accomplishment places Loudoun County among an elite group of emergency communication centers worldwide. The ECC staffers from Fire and Rescue and the Sheriff's Office process more than 370,000 calls a year, serving as the vital first point of contact for residents and visitors experiencing emergency situations.

[00:53:19] Second, Loudoun County is accepting applications for rental units in South Riding through a program designed for households with earnings in the mid-range of the area median income. The Midway Rental Program offers opportunities for individuals and families to rent units from participating apartment complexes at a lower-than-market rental price.

[00:53:39] Details are online at [loudon.gov slash midwayrentalprogram](http://loudon.gov/midwayrentalprogram). Third, Loudoun County is hosting a public information meeting about the development of a watershed management plan in the Bull Run Watershed in the southern part of the county. The plan will inform efforts to reduce flood risks, protect water quality, and support the long-term health of the watershed.

[00:53:59] The meeting will be held January 28th at 6 p.m. at the Dulles South Senior Center. more information is online at [loudon.gov slash fullrunwatershed](http://loudon.gov/fullrunwatershed). And then finally, as Chair Randall just mentioned, winter is here. The weather forecast indicates that we may have a significant winter storm in our region this weekend. The county's public safety officials encourage everyone to be prepared for adverse winter weather. Loudoun County offers many resources to help keep your friends, neighbors, pets, and homes safe this winter. You can find these winter safety tips and more online at [loudon.gov slash winter](http://loudon.gov/winter). Thank you, Madam Chair. Those are my comments for this

[00:54:37] afternoon. Thank you, Mr. M. Street. I do want to say that my office will be putting out both a special newsletter and putting on my Facebook page all the information about the storm. But I will say this. If you or you know somebody who may need food assistance from any of our amazing food pantries to help with food assistance, please do not have hesitate to do that because it will be really hard to get there in the middle of the storm.

[00:55:06] So if you need food assistance, I will put that out on my Facebook page and in my newsletter probably Thursday. Please, please, please take care of yourself and your family and that's why we do it. It's there for you. All right, everyone, we have two ledge items tonight.

[00:55:24] We have the General Assembly report, and we have alleged item for psychiatry services at the Adult Detention Center. So I think I'm going to go on. I know we have staff in the room for the second

item, but I know Mr. Freeman, who's waiting online, does have some other appointments to get to tonight on our behalf in Richmond.

[00:55:54] And so we want to be able to get him off as soon as we can so we can go on and do all the things he's doing on our behalf in Richmond. Hello, Mr. Freeman. How are you? Good afternoon, Madam Chair, members of the board. Ready when you are. So, Madam Chair, before I get into the item, I would like to highlight some key events that have happened in Richmond over the past week.

[00:56:19] So, as the board knows, the legislative session began last Wednesday, January 14th. The General Assembly did take up four constitutional amendments, which were mid-decade redistricting, repeal of prohibition of same-sex marriage, automatic restoration of voting rights, and enshrining reproductive freedom in the state constitution.

[00:56:43] Of course, the board knows over the past weekend, the governor, Governor Spanberger, Lieutenant Governor Hashmi, and Attorney General Jones were inaugurated. The governor did give her first State of the Commonwealth address this past Monday.

[00:57:01] And also, I want to highlight the new secretariats have been giving presentations to many of the committees, such as Secretary of Finance. Secretary Sickles did give a presentation to the Senate Finance Committee just this morning.

[00:57:20] We do have a new chair of House, counties, cities, and towns, which is Delegate Helmer. And I also want to note there was a slow trickle of bills to come in due to all of the inaugural activities and interviews of the secretaries and such.

[00:57:43] And so, there were a couple of hundred bills that dropped just yesterday that say they were introduced on January 14th by the pre-filing deadline, but please note they were just put online within the last 24 hours or so. So, I do want to note that.

[00:57:59] The final deadline for legislators to introduce bills is this Friday, January 23rd. After that, legislators will need unanimous consent to introduce a bill. Budget amendments were all due last Friday, of which the board, of course, is partnering with the Conservation Fund on a budget amendment for Oak Hill, which is the acquisition language.

[00:58:26] The Senate Finance Committee said this morning that the budget amendments that were submitted should be made public sometime this afternoon. I have not looked as of the start of this board meeting, but they should be up.

[00:58:42] momentarily, if they are not already up. So getting into section one of the board's initiatives, Delegate Martinez did introduce the homeownership grants program bill. Senator Perry introduced her version as well, which has been referred to Senate Local Government Committee. You do not see that on the item because Senator Perry's bill was among the batch of bills to slowly trickle in online in the last 24 hours or so, we are still waiting on a referral for Delegate Martinez Homeownership Grants bill.

[00:59:20] Moving on to Oak Hill, Delegate Lopez introduced his bill. Delegate McAuliffe and Senator Perry as well introduced a Oak Hill bill as well. For the House bills, they are still waiting to be heard in House Agriculture Committee. But Senator Perry's Oak Hill bill was heard yesterday, of which the county did testify in support, of course.

[00:59:42] There was many more stakeholders that testified in support. Happy to announce there was no opposition that testified, so that was a positive sign. Senator Perry's bill has been re-referred to Senate Finance, which was not a surprise.

[00:59:58] This is the same path that it followed last session, as this is a state acquisition. So no surprises there. For anti-rent gouging, Delegate Clark's bill, HB 278, was introduced and referred to House, counties, cities, and towns subcommittee number three. I'm very happy to announce that about 31 delegates have signed on to co-sponsor this bill.

[01:00:25] So, this is an effort that I think is a very good year for. We still remain watchful to see how the opposition will take hold and which legislators we will need to continue to lobby for support, but we were pleased to see the amount of delegates that signed on to this effort.

[01:00:46] Senator Boyceco's bill, SB 355, again, one of those bills that came in with the slow batch to come online was introduced and referred to senate local government finally of the board's initiatives delegate singh did introduce the authority to consider power bill this is still waiting on committee referral and that's hb 1112 uh senator srinobotson's bill uh trickled in online again on last 24 hours or so sb 554 this was referred to senate local government

[01:01:23] And so we remain watchful for the referral for that House bill. But we expect that it should be referred to County, Cities, and Towers Committee. Moving to Section 2. Well, first, Madam Chair, I apologize.

[01:01:39] I'll pause to see if there are any questions. Yeah, there are any questions. Or would you like me to contain it? No, no, I do want to ask a question, actually. So the Oak Hill bill, it's going to be referred to Senate Finance as it was last year. First of all, is there anything else we should be doing right now at all for that bill?

[01:02:01] And secondly, and I guess I'm asking that because, like, that's a normal process. But we also know, you know, normal processes can kind of trip up really quick. And we are very committed to getting Oak Hill done.

[01:02:17] I think the thing I want everyone to know is that we're not asking for any money. We're not asking for them to give us any money. And is there anyone that we need to talk to or to really to relay that to? Is there anything else we can do to get Oak Hill through?

[01:02:36] I mean, I'm glad to hear it didn't have me on position, but what do we need to do? I think, Madam Chair, at this time, the best thing that anyone that supports this effort can do is reach out to any legislators that you have relationships with on Senate Finance Committee.

[01:02:55] Can you send us a list of Senators who are on Senate Finance and a list of delegates who are on Appropriations?

[01:03:12] Do you mind sending us that? Because I know between us, we do have relationships with them, but I just don't know all of who they are. So can you send that to us, please? Absolutely. All right. Thank you so much. All right. you can keep going. Okay. In section two, we do have a couple of attachments. Attachment two is a list of bills that staff is still reviewing and actively tracking. Attachment three lists the legislation related to data centers. Attachment four is for legislation related to reproductive

[01:03:49] rights. And finally, attachment five is related to housing and zoning legislation. I do want to highlight. There are about 20 or so bills in the attachment, attachment three for the data centers. We do expect that that number will double or so in an attachment coming soon to you all for your awareness. I think there is a overall theme of, you know, legislators trying to do

[01:04:20] something related to data centers, related to noise, water consumption, power, sales and use tax exemption, you name it. And so we are continuing to have conversations to really see where the overall consensus will land on data centers as a whole, as I think that legislators are still having those conversations as we speak.

[01:04:49] On attachment five, I do want to highlight there are about 40 bills related to housing and zoning legislation. Within the last 24 hours, we have heard that there are about 100 bills that may have dropped related to housing and zoning.

[01:05:04] And so we will update our tracker as well. I do want to give honorable mention to the fact that faith and housing bills are back. HB 1279 sponsored by delegate Joshua Cole and SB 367 sponsored by Senator Carol Foy. And so we are remaining to have conversations on that.

[01:05:27] That is not in the item as those bills trickled in as well. But, but I wanted to make sure the board knew that faith in housing is bad. That's bad. Okay. Anything else? Okay. Thank you.

[01:05:44] No. Okay. Questions for Mr. Freeman, Ms. Brixman. Thank you, Madam Chair, and thank you so much for the comprehensive item and your update. I know you've been really busy down there. I am glad that we will be supporting the referendum on reproductive rights officially in our legislative agenda.

[01:06:06] Finally, I have some questions, and maybe I'll just say them. we can go bill by bill. On SB2, the paid family medical leave program, as I read it, it wouldn't require counties to participate in that. It just sets up the options. So my question is, if it's just an option, why would we oppose it? On House Bill 557, colleagues, I'm excited that that is the bill that was vetoed by the governor last year that I worked on with Delegate Reed that offers

[01:06:42] um a tax incentive to landscaping organizations that decide to um turn over their equipment from gas powered to battery powered so hopefully that will fly through this year i'm really excited about that um on house bill 708 uh it we talked a lot in the in the hash me uh housing committee about incentives rather like carrots rather than sticks on some of this stuff and i guess this is more of a comment than a question but i guess the question is could there be amendments to this bill

[01:07:18] i think the answer is yes but in my mind why would you provide an extra resource or staffer to counties who are not meeting the 12-month permitting goal like in my mind if you're not meeting those goals you should get the resources right an incentive to help you reach those goals so if we think that house bill 708 is going to stay alive maybe that's an amendment that we offer um and i think oh lastly on on house bill 289 i do have a motion on that tonight but do you

[01:07:56] have any information on this there's like four bills on um sort of like balcony solar which i'm really, really interested in? And do you have any sort of, you know, crystal ball that tells you if those are going to meld together or how that might pan out? Mr. Freeman? Not at this time. I do want to highlight for SB2, Paid Family and Medical Leave Insurance Program, one of the issues that staff had with that bill, and we can get more information to you, Supervisor Burchman, but

[01:08:33] One of the issues with that bill that staff found was that it mandated localities contribute to the insurance plan, which removed local control over its benefits. That's problematic. And what about the, sorry, the balcony solar question?

[01:08:53] Well, go on, because you had answered that question already, asked that question already. You're going to answer that one. I unfortunately don't have any information on that right now. Okay, thank you. Okay, thank you. Mr. Crony. Thank you, Chair Randall, and thank you, Mr. Freeman, for all your hard work down in Richmond.

[01:09:10] So I know Delegate Reed put forward a bill, HB 1133, about a Virginia solar energy and battery energy storage system tax credit, and we put that in our legislative program.

[01:09:27] So I'm just wondering if that's something we can support, put in our list of bills that we support. I believe we are still analyzing that bill at this time, but we'll get more information on that. Okay, yeah, because he's the one that I actually spoke to about, you know, doing a solar tax credit.

[01:09:49] So I'm glad that he put forward that bill, a state tax credit. Also, he has a bill, HB 1134, to establish the White's Ferry Reopening Working Group. so i didn't know if um you were tracking that bill we have seen that bill and we're still analyzing that bill as well okay okay he has a lot of bills so i just noticed that one that's in your district supervisor kersner so anyway um mccullough's district no it's in um it's in

[01:10:27] catooton it's in john mccullough's district yeah house district oh not david reeds yes yes but he has that bill. And then one thing that I'm really interested in is John McAuliffe put in HB 501 to look at groundwater supply in Western Lowndon and Fauquier counties, DEQ to study threats and challenges. So I thought that was really interesting because, you know, we've been hearing about water issues in Western Lowndon counties. So that's a bill John McAuliffe's doing. And then there are

[01:10:58] a bunch of bills hb 1120 about e-dirt bikes and i know we put that in our legislative program i don't know if you're tracking some of those bills mr freeman it's hb 1120 from delegate sing yes we are tracking that bill um we actually we did work with uh delegates saying to ensure that on the list of stakeholders that vaco and vml were listed

[01:11:33] and so we were happy to work with delegates saying on that oh okay great great thank you so much i appreciate it i i don't imagine that there's any way to put together a working group for whites ferry that did not involve maryland and i don't imagine that david rey can actually um pass a bill that mandates anyone in Maryland to do anything.

[01:11:57] And I don't imagine that Mr. Reed knows how much has been done on White's Ferry already between myself, Mr. Kirshner, Mr. Rogers, and many other people. And so we don't have to formally oppose Mr. Reed's bill on White's Ferry, but I will say it is fairly nonsensical.

[01:12:16] And if we need to formally oppose it, we can. And we can also ask the delegate in that district, which is John McAuliffe, And before that, it was actually Mr. Higgins. And so if we need to have that discussion with Mr. Reed, we can certainly do that as well.

[01:12:36] So I am so concerned about 100 housing bills. I do think, though, Mr. Freeman, a couple of things. First, I listened to the governor's state of the Commonwealth.

[01:12:51] It was excellent. And she did talk about housing. And what she talked about was doing partnerships and incentives and things like that. And so I do believe that in any way that we believe we can

partner with the General Assembly, we should.

[01:13:07] And we want to say that out loud. I don't know that we have said enough, one, how much we've already done for attainable housing, but two, that we want to be a partner with the General Assembly. So we may want to look at our legislation, our one-pager. Oh, here he comes.

[01:13:24] can do that himself. I was going to say Mr. Sains told me about this today, to not just say what we oppose, but to say what we approve of and partner of. I do think that if we only say what we oppose, it could give the impression that we're not doing anything and that we're not partnering, that we haven't done the amazing amounts of attainable housing that we've done.

[01:13:45] We also want to make sure that we are supporting the anti-gouging legislation that is down the General Assembly, it is as important to build attainable homes as it is to keep people in their homes who are in their homes already. And so those bills like anti-gouging are really important too.

[01:14:07] And so maybe, I'm looking at the staff, kind of your staff that's sitting here, Mr. McCullough, we may need to take some of our one-pagers and just tweak it to say what we've already done and what we support and much of what governor spanberger has said is what we support but we want to make that known that we have a lot of things in housing that we support we just do not want to lose our local control and land use or zoning okay um otherwise i think that's it i think that's it thank you mr freeman um you and i have been talking every day i do appreciate you so much

[01:14:43] i'm going to assume you're not sitting in the stairwell right now and so you usually sit to give these updates and and uh i think that's it for now thank you madam chair i do think we have well don't leave yet because i do think we have some motions it any information item can become a action item by somebody bringing motions i have a piece of piece of paper in front of me for miss um brixman that says that she wants to do some motions um for things that are not in our program already? Is that right, Ms. Bricksman? Yes, Madam Chair. None of these are in the program already?

[01:15:23] No, Madam Chair. Okay, then let's go. Okay, I move that the Loudoun County Board of Supervisors support House Bill 71, absentee voting, in-person voter, satellite offices, days, hours of operation, patroned by Delegate Reeser in the 2026 legislative session. Second.

[01:15:41] Thank you, Madam Chair. So this bill was attempted last year, but basically... I'm not touching anything. Oh, okay, okay. I didn't even touch anything. What, is AI repeating my motion?

[01:15:58] That is so crazy. I wasn't even touching anything. That is just scary. Wow. Just scary. No more data... No, I'm just kidding. Okay, so what this bill does, is it allows localities to extend the days and hours of satellite early voting facilities beyond what is the minimum in the code.

[01:16:24] We did look at the legislative agenda and we didn't have anything in there about expanding voting options. And that's simply what this bill does. It would allow us to say we want, say, Claude Moore Center to be open X hours and X days beyond what is the minimum in the code.

[01:16:45] So, Ms. Bixman, there is never a time I'm not going to be yay more voting. But I will ask you, have you talked to Mr. Keech, Ms. Brown, the people all over? Because I know that during the election season, they are pretty overwhelmed already.

[01:17:02] And so have you had a discussion with those offices, that office? I have had many discussions with that office. I believe I had discussions with them last year when this bill came through, and I'm

confident that Delegate Reeser had discussions with them as well.

[01:17:19] So they were not opposed to it. They did not see this as an issue? No. Okay, wonderful. Obviously, you know, voting is sacrosanct, in my opinion. And people have died from my right to vote, and I never understand trying to limit voter hours.

[01:17:40] I do hope that we go back to Sunday voting, which used to be called so to the polls on one Sunday before the election. It's just one Sunday. I hope we go back to all those as well. And so I'm happy to second and support this.

[01:17:57] Any other discussion on the motion? All right. All in favor, say aye. Opposed? motion will pass 801 with Ms. Umstead off the dais. Next motion. Thank you, Madam Chair. I move that Loudoun County Board of Supervisors support House Bill 223, Public Defender Local Funding for Positions, patroned by Delegate Hope in the 2026 legislative session. Motion was made and seconded by Mr. Kirshner. Thank you, Mr. Kirshner. Okay, so this bill, it does a couple things for us. First

[01:18:36] of all, it brings our county and other counties into compliance, basically, because we are already supplementing the public defender's office, and we are already funding non-attorney positions in the public defender's office. So the bill brings us into compliance. And then secondly, it does authorize now localities to fund actual attorneys in the public defender's office. I will support that. I'm not sure if, I think that that can be a budget discussion. I'm not sure that I want us

[01:19:13] funding actual attorneys without assurances that we only do it for a couple years until the indigent defense commission can fund us. I understand that we're ninth in line for getting additional attorneys in our public defender's office. So I want to have more discussions about that. I'm not asking for that right now. I'm just asking for us to support the bill to bring us into compliance and allow us and or other localities to fund actual attorneys if they choose to do so okay mr um internal yeah i was just going to ask because the topic's getting brought up so obviously the concern with even the compensation supplements is that we essentially do the job

[01:19:52] that the state should be doing and so i i always hate to do things that reinforce that so i know part of our program is in fact to ask for better compensation both I think Supervisor Brisbane was just referring to the staffing levels but there's also a pure compensation issue with the salary supplements so has there been any discussion yet or any traction on that and if if we were to support this bill I would want to make sure that we included in our any sort of message our sort of reiterating our position that this is the state's responsibility and they should be

[01:20:29] bridging adequate compensation in Northern Virginia for attorneys. That might be a question for Mr. Freeman, I guess. Or for Mr. Or for Mr. Maybe because for Mr. Hempstreet, Mr. Whoever wants him. Mr. Freeman, you want to take that before I go to Mr. Hempstreet, Mr. Rogers?

[01:20:47] Do me a favor. Stop Mr. Letourneau's time. Mr. Letourneau, just because I'm not sure that everyone kind of understands what you're speaking of, and I think it's so important, Would you just do a little bit more explaining of the county doing state responsibilities, financial responsibilities?

[01:21:03] Yeah, so in a number of areas, there are essentially state function offices in which, frankly, the pay is not adequate coming from the state. And so the counties have to supplement that income for the employees or that function won't be adequately staffed with the type of folks that have the qualifications needed to do it.

[01:21:24] we've run into this most recently in the public defender's office and they came to us and asked for help with additional compensation but we've seen this judicial circuit even i don't believe at one point commonwealth attorney's office different different things court services back when we had health up all sorts of things we're in this category and with all the talk of a state surplus it gets frustrating because the county ends up taking up these responsibilities the states standards are just haven't caught up with the times so we have a colleague at vaco name is billy kiger he's always saying you don't have a surplus till you pay your bills

[01:22:02] yeah right yeah um did any of either of you want to answer the mr letourneau's uh initial question mr freeman you want to go take a stab at that are you frozen is he frozen no i'm not i was just sitting very very still i i have not heard whether this effort has any traction um i will say that there is a overall conversation brewing about uh the as supervisor letourneau

[01:22:35] eloquently noted about the state responsibilities that are covered with local funds uh and so you know whether that goes against that conversation or not I think that there's an overall conversation that is happening with localities in the state. Yeah so I'll support the motion I just want to make sure that when we communicate on this specific bill we we don't forget to include the larger point that we are doing this and we can get clarification on the legality of being able to fund positions but this is not how it should be and how not how it was

[01:23:12] attended, and so please, General Assembly, don't lose sight on the bigger picture. Mr. Kirshner? Thank you, Madam Chair. I want to reiterate a little bit what Supervisor Letourneau said. I want to support this because I think there's a real need here. I think anybody in our Public Defender's Office who I'm most familiar with, I'm very familiar with a number of the Public Defender's Office because of the practice of law that I do throughout Northern Virginia, they are overworked and underpaid as a general rule, and I think

[01:23:42] There are obviously two ways to make sure that those who are indigent receive the necessary legal counsel that the Constitution guarantees them. And obviously it would be either through paying private attorneys through the court appointment process or obviously having a fairly robust public defender's office.

[01:24:04] And we kind of do a mixture of the two throughout the state. And obviously the funds need to be reasonably allocated in both ways to make sure this need is met. So in any way that this would help do that, I would certainly support. But again, obviously the state needs to step up and take on their responsibility.

[01:24:22] I do think any support for this needs to make sure that's reiterated. That's just my thought process. And I haven't actually read the full text of the bill, but it does sound like something I would support. And certainly I think our public defenders would hail it as a good bill. Thank you.

[01:24:37] Thank you. And I would associate myself with all the comments made and remind people that Northern Virginia just has a higher cost of living. And so it's very, very hard for, if that supplement is not paid, it's very hard to keep good people because they can make that same amount of money and go down someplace, some other location in Virginia and, or go private, some location in Virginia and be able to live more comfortably just because Northern Virginia has a higher cost of living.

[01:25:04] And so not only are we supplementing these, but we literally are just trying to keep good staff. And as Ms. Letourneau said, it is across the board in many, many areas. It is not just this issue. And there are times that you have somebody, two people doing the exact same job, or very close to the same job.

[01:25:22] One's a state employee, one's a county employee, and the state employee is going to be paid less because the state's not paying them. That's why we supplement, because otherwise we would lose those employees. And so we're kind of stuck between a rock and a hard place. We don't want to lose good employees that are doing the job, even though they're state employees.

[01:25:40] And we don't believe we should be, you know, picking up state costs. But we get a little bit stuck in those moments. So, yeah, would you like a closing? Yes, thank you, Madam Chair. And thank you, Supervisor Kirshner, for your comments as the daughter of a public defender.

[01:25:56] I know what it's like to try and live on a public defender's salary, so this has always been close to my heart. And I know that the public defender, Lori O'Donnell, has really, really appreciated the four positions that we funded last year and the increase in the salary supplement.

[01:26:12] Again, this bill, hopefully it will pass. It will bring us into compliance, as I said. And then we can have the discussion about whether we want to fund one or two attorneys in her office in the FY27 budget. I'm not sure we want to without assurances that we will have some sort of a conversation as to when that would end with the indigent commission.

[01:26:36] But yes, Supervisor Kirshner, I completely agree that we are not living up to our aspirations of equal protection under the law if the other side is overworked and underpaid. Thank you very much, Madam Chair. Thank you. Ms. Brickson made the motion, Supervisor Kirchner, seconded the motion.

[01:26:56] All of the people who say aye. Aye. Any opposed? That motion will pass 801. And then one more motion. And we are running behind, so we may want to. Madam Chair, I'm going to hold off on that last motion because I think those four bills might shake out to be one bill eventually on the solar. Thank you.

[01:27:12] Wonderful. Mr. Freeman, thank you so much for all the work you're doing down there for us. We really appreciate it. We appreciate you. Thank you very much, and we'll talk to you all later. We're going to go on, we're running just a tiny bit behind, but we have the second information item, the Healthcare Psychiatry Services for the Adult Detention Center.

[01:27:31] Would everyone please come to the table? Good evening. Item tonight is an item in discussion of the operations of the Adult Detention Center, specifically the contracting of Healthcare and Psychiatry Services.

[01:27:59] Over the last few months at the Finance Committee, the Finance Committee has discussed various operating models for providing those services. The item was originally brought forward in October, and based on some questions about different operating models from our neighboring jurisdictions, the item has been updated since October with that additional information and is included in the packet this evening.

[01:28:25] This item was originally presented to the Finance Committee under the umbrella of FY27 budget development. And OMB's work with the Sheriff's Office is reflected in that item. And just to conclude that between the Sheriff's Office and OMB, we've discussed the various operating models and

coalesced around a recommendation that should the board wish to fund a medical director position in the sheriff's office.

[01:28:57] That position would be acceptable to the sheriff's office to act as both a medical director and a contract manager for healthcare and psychiatry services. And so we are working with the sheriff's office to include that position in the FY27 proposed budget based on discussion this evening.

[01:29:18] And staff from OMB and the sheriff's office is here to answer any questions. Supervisors, I specifically ask that the Sheriff's Department brought this to us to discuss for all kind of obvious reasons. I think that when we get to a budget, when we have this discussion, it could be a little bit of a longer discussion.

[01:29:35] So I thought maybe we could do some of the work right here, right now, so it wouldn't take so long when we got to the budget item. So if you have any questions about this item, this is the time to ask those questions. Ms. Bricksman.

[01:29:52] Thank you, Madam Chair, and thank you, staff, for all of your work on this. Thank you to the Sheriff's Department for coming out this evening to discuss. Do we have any updates? Well, just for background, because I'm not sure if this has been to the full board yet. I think it was mostly in finance.

[01:30:08] Just for background, for my colleagues, WellPath, the existing provider, is party to a number of lawsuits because of issues in other detention centers where they were providing the medical care. And so I raised concerns about this and perhaps a little bit more accountability for the medical provider in our ADC.

[01:30:35] Do we have any updates on the WellPath situation at all? I know they declared bankruptcy. They did, but they're under the bankruptcy clause. They continue to provide services, and it's been uninterrupted for us here inside Loudoun County.

[01:30:52] and you haven't had issues no no okay um also what i didn't see in this item is what what was the contract previous in the previous fiscal year um because here it says scenario one it would be 8.8 million scenario two 9.9 million it was about half that last fiscal year but we're adding a bunch of services so that's why it's going up they did yes um so we're increasing the psychiatric

[01:31:22] That's what I thought. Yeah. So right now we have an agreement with Loudoun County Mental Health who provides licensed clinical social workers inside the ADC and they're kind of embedded with the with the security staff. The psychiatrist is a contract employee of WellPath. So that falls under the medical contract. So the goal with this upcoming RFP that will be going out will be to increase those to full time hours. So it'll be a full time psychiatrist assigned specifically to our detention center.

[01:31:50] but not from msads i'm sorry not from from mh sad no okay it would be kind of okay it was whoever the the um whoever is selected okay contractor okay okay great um and it's my understanding i mean i i will say for my colleagues that i support scenario two and i believe that the um sorry Scenario 3. I support Scenario 3 and it's my understanding that the Loudon Sheriff's Department is not opposed to Scenario 3, but you're not making it a budget priority.

[01:32:30] Correct. Okay. Okay. I think those are all of my questions and I guess we don't really need a motion because it'll come up. It'll come to budget. Okay. Thank you. There's no motion needed tonight. I

just think there's going to be a lot of discussion. I was just trying to get this ahead of us first. Thanks. Mr. Letourneau? Yeah, so I think the existing contracts for \$3 million, right?

[01:32:49] So we'd be going from three to anywhere between 8.8 and 9.9 with the recommended or I think the consensus perhaps being the scenario three, which is 9.1 million. So that's obviously a massive increase.

[01:33:06] How much of that is because of additional services versus if we were to keep the same level of service, what would it go up by? this contract needs to be rebid and so we can't really speak to what it would go up with standard services but i think the increased contract amount is reflective of industry best practices that the sheriff's office is seeking to align with yeah i can add to that um so in addition to the increasing the psychiatrist hours um it at some point um our intent is to start the

[01:33:45] initiation of medication for assisted treatment. Right now, we just do continuation of inmates that are coming in that have a prescription. So the upcoming RFP is also taking into account a full-time MAC coordinator that would fall under that contract as well to assist in managing those inmates that are prescribed. Okay. I don't question that there's a need for it, but given that this is a big increase. I wouldn't mind hearing from all of you just in terms of why you think it's necessary to add that level of service. I know Megan just said industry best practices, but you're kind of

[01:34:22] the experts. Yeah, I would just say with the psychiatric services that we're looking to expand upon and to ensure more coverage across the board. And then also, as just mentioned a moment ago, the medically assisted treatment programs. Just to give you an idea, we have one person that is on sublocate in the current price for just that one injection is over \$2,000. And so we already have a total of 15 people in a medically assisted treatment program.

[01:34:49] So there is significant expense on the front end that we're looking into especially as we look at phase three and more recovery efforts geared along that. Right. So the I think I don't know if I go as far as a recommendation but the sheriff's office is comfortable with having a civilian medical oversight position, that's a county employee, and then contracting the actual service.

[01:35:13] So I'll say it this way. The preferred model is the sheriff supports to continue with the contracted medical services, number one. And the model would provide for the strongest protection in terms of liability. And then consideration for the medical director position, we look at it from the standpoint. We understand the board may consider establishing the director position and for governance and operational continuity.

[01:35:39] The important thing is to think about a medical director, we're talking about quality assurance and quality control. And that way we can all be looking at what's taking place and be able to make decisions appropriately based on best practices. - Okay, that seems like a good compromise.

[01:35:55] - Ms. Glass. - Thank you, Madam Chair. Phase three of the adult detention center will add 49 inmate beds. Do you know how much the additional bed will add to the estimated delivery costs, the service delivery costs?

[01:36:12] - So that was kind of factored into the positions that we were requesting in the next RFP. So there's, you're correct, there's 48 beds. There'll be a direct supervision slash kind of like a program type of housing.

[01:36:28] So there will be programming space off of the housing unit in addition to locations for nursing and mental health staff to kind of integrate with the inmates. So since it's kind of it, the layout of the building required us to kind of add some additional medical staff, as far as RNs and LPNs, to go ahead and administer medications.

[01:36:54] And that is actually going to add, so one of the other things that kind of plays into this is, With the initiation of medication-assisted treatment, there's going to be more inmates on medication where we're going to need more nurses to administer those medications.

[01:37:10] So that was added in as well for the estimate for the next RFP. Okay, thank you. Good, Mr. Turner, Vice Chair Turner. Thank you, Madam Chair. Colonel Moser, did I hear you just say that the OCSO supports contracted services, which means either option three or option four?

[01:37:33] Yeah, option three, looking at that. You prefer option three? Yeah, the sheriff does. Okay, and when I read option four, I'm using a military term, span of control seemed to be a problem that there would be too many civilian oversight functions that would have to be performed.

[01:37:49] Correct. Do you have anything to add? I think option four was the fully, full county staff. It's a full, multiple civilian medical positions. Yeah, so that was basically taking all of our contractual services that we have right now and bringing them in-house so all of those contractual employees would become county employees okay um but you're looking at an increase in actual staffing as well because there's a lot of things that our our contractor does on the outside as far as hiring policy development that

[01:38:23] we would then have to bring in in-house okay thank you first of all thank you for this and thank you all you're doing I think everyone knows my commitment to to this population yes who's calling me somewhere around 80% of people who are incarcerated have a co-occurring disorder or a mental health disorder you cannot treat people in an incarcerated setting without treating their mental health disorder mental

[01:39:01] health is health. Substance abuse is a disease. It is not a character flaw. And it is smart to do recovery while they are in an incarcerated setting. This looks like a high price tag because we do not know the price tag of people who get out, who reoffend, who keep using substances, and who have no support around them. People who can learn recovery, start getting assistance, start getting the right medication, are much less likely to reoffend, thus they're not going to cost everybody more money.

[01:39:39] So it is a dollar and cents issue. It's also a common sense issue. And our ADC has been moving more and more every year to treating, to obviously safety and security, but also realizing that, you know, if you're going to treat somebody's diabetes, you've got to treat somebody's mental health issue. You just do. And so this is something that I have been hoping for, looking for, wanting for a very long time. So I have no questions. I

[01:40:17] have an offer. If you need whatever you all need, let me know. Having worked for years in the prison system, I know what a hard job that is. This will also make it easier for the officers in the ADC because dealing with inmates who are having a mental health crisis is exhausting and takes a lot of resources and so will also help with the resource needs of the officers as well. There is only good reasons to do this and so I look forward to making this motion myself when it comes up in

[01:40:57] budget thank you manager thank you very much all right i think we are done there you all are going to hang out nice and close because we're going to do the constitutional amendment right now we're

going to do the proclamation for constitutional officers right now is mr is sheriff chapman coming in the room for that is he in the room where is it lobby we grabbing okay um mr turner

[01:41:21] will you meet me down front for that please with all our constitutional officers please come down

[01:42:16] front. So we have a proclamation for constitutional offices week, which we do every year. And so I'm

[01:43:13] really happy to do that one this year. Okay. Whereas Article 7, Section 1 of the Virginia Constitution provides for the direct election of local officials charged with the critically important duties of maintenance of public records, operation of the circuit courts.

[01:43:30] Where is he? Oh, he's sick. Okay. Prosecution of criminals, protection of the public, and the administration and collection of local revenues. And whereas Loudoun County's clerk of the court, commissioner of the revenue, commonwealth attorney, sheriff, and treasurer, continued tradition of local administration of government functions that predates the American Revolution.

[01:43:53] And whereas these constitutional officers, deputies, and employees who serve in their offices provide the people of Loudoun County with a direct link to their government at the local level and responsive to citizens' needs, and whereas the constitutional officers embody Thomas Jefferson's ideal form of representative democracy, which provides for direct accountability to the people by virtue of the people's right to vote for their constitutional officers,

[01:44:23] And whereas the Constitutional Officers of Loudoun County are setting new standards for customer service, innovation, service delivery, and responsibility to better serve the citizens of Loudoun County, now therefore be it resolved that the Loudoun County Board of Supervisors does hereby proclaim January 19th through January 23rd is Constitutional Officers Week in Loudoun County and commends Constitutional Officers and their staffs for their service.

[01:44:53] Service to the people of Loudoun County and the Commonwealth of Virginia. I will say that there is not a week that goes by that I don't speak to at least one, usually more than one, of our constitutional officers, and I appreciate that.

[01:45:13] I will also say that, I'm going to say something very special to you, Mr. Eichelberg. You are kind of, you are everywhere, because I am everywhere, and when I get there, you're there too. You are really, really involved, and you come to events that not everyone attends, and you're just there all the time.

[01:45:34] And I appreciate that, because not everyone knows what you do, and the person before you was here since Moses was a baby. So we really appreciate that. What Thomas Jefferson said. So we really appreciate that.

[01:45:51] Any one of you want to make any statements? no one else wants him because gary's not here because gary's not here all right we're gonna hand these out and we will then take a picture we can pick but gary with the ai gary has the best

[01:46:16] the best gig ever he has an eight year that is a good gig right there it was somebody's job that

[01:47:55] didn't do your job okay we're going to go on to public speakers supervisors we have a lot of public speakers although none of them are in my folder thank you we have a lot of public speakers this evening. Oh, I do have them. After public speakers, we may take a quick break. We're not going to do any

of the closed sessions at our first break because the closed sessions are going to take a little longer time. We'll take a 15-minute break. Well, not quite that long after public speakers, and then we will come back and do board comments. Or we may

[01:48:29] do board comments before we take our break. Usually to the public, to Loudoun, if we choose to respond to anything, we respond to our board comments. That's why we often do board comments, right after we do public speakers. And so we may stay on, do board comments and then take a break after that. But we have quite a few people speaking. Please know that I try to call people first who have an item on the agenda. And then I will go back and call people who do not have items on the agenda. My first person tonight, just so you're ready

[01:49:04] and teed up will be Sarah Schollers, and then I'll go back and call everybody in order from there. I will call you three people in advance so that you are ready to come up next and so you know that you're the next person up.

[01:49:21] So we do have this item on the agenda is the street safety precautions, I mean person number nine on that is Sarah Schollers. If you are here, can you come up please? can come to any podium um closest to you and the time on the on the that you're speaking for is not three minutes shenny it's two minutes there we go thank you is she here she's here okay either

[01:49:50] either either podium hello and thank you for being here good evening and thank you for the opportunity to speak tonight my name is sarah schollers and i am the sister of alissa cakel on december 1st 2025 alissa was struck and killed by a loudon county transit bus while walking home at the intersection of crossing lane and moorfield boulevard we stand before you tonight grieving the loss of our sister and we respectfully ask that you support supervisor glass's request to direct

[01:50:30] the staff to determine the scope cost funding sources and transportation safety study around the ashburn metro station this request is actually the first step in a broader process one that evaluates how to improve safety for loudon county residents who live work travel in this growing area any recommendations and improvements would return to this board for your review and approval the ashburn metro station area was intentionally designed to serve

[01:51:03] drivers pedestrians cyclists metro riders and families as development has increased so has safety concerns including lighting site distance pedestrian crossing speeding and turning movements the pro the proposed study would take a comprehensive look at how all the users move through this area and examine reasonable actionable solutions while still respecting the character and design of the Moorfield Station community. More than 1,300 residents have signed a petition calling

[01:51:41] for safety improvements at this location. Many have raised concern over the past few years after witnessing repeated accidents and now tragically loss of life. Approving this motion does not commit the county to specific fixes or cost. It just simply allows your staff to return to you with information that is needed to make informed decisions. Tonight's vote is about whether the safety of Loudoun County residents is worth studying with the seriousness it deserves.

[01:52:13] We ask you to look around tonight and anybody that's wearing orange as a Loudoun County resident. We wear orange to honor Alyssa and to advocate for a safer future on behalf of my sister, our families, and our community. We respectfully ask that you vote yes.

[01:52:32] Thank you. I did let her go a little long because I thought that it was important that we heard everything. And your brother is here with you tonight, who was also a police officer in one of our towns. That's correct. And the other family members. First of all, on behalf of the board, we do extend our condolences to you and your family.

[01:52:57] We are so sorry for the loss of your sister. I did have a long talk with Ms. Glass about this tonight. and the fact that your family has started this effort and got so many signatures on the petition is one important, and two, a message for us, and three, very impressive.

[01:53:19] So we're sorry for your loss, and we will take this vote up tonight. Thank you very much for being here. - Thank you, I appreciate your time. - Thank you, thank you. All right, in this order, Craig Newman,

[01:53:33] Bob Sealy. I'm sorry. Oh, I'm sorry. Okay, let's go. Let's do. Let's do Craig Newman and then let's go with Robert Smith. That's what I said. Robert Smith after Mr. Newman. Oh, we just got two more. Hello, sir. Hello. Ready when you are. Okay. Distinguished members of the board. Good evening. On December 7th, 2025, a basketball game was played between Farmwell Station and Harper Park.

[01:54:15] The game was clearly won by Farmwell, but because of the violent action of a player on the other team, Farmwall is being asked to forfeit the game. I'm extremely disappointed with the decision PRCS made to forfeit the game against Farmwall. A player from the other team committed an egregious and violent act against our player, and yet we're the ones being punished. The Farmwall team won the game, and the only team that's being punished is Farmwall.

[01:54:34] The game was out of control from the beginning as referees failed to take charge of the game. Finally, with six seconds remaining, the player from the other team knocked the Farmwall player up into the bleachers. This was not a basketball play. It was a violent hit. this is the incident that caused the chaos at no point that the players from farm will engage in the chaos and transfer it on the court you cannot expect the parent to remain calm when she watches her child get knocked up into the bleachers at the risk of serious personal injury have you seen the video if not you should look at it this was this was not a basketball play it was a violent act is there one parent in this room that can stand still and watch their parent watch their child

[01:55:10] get hit like that i doubt it don't get me wrong under normal circumstances parents should never leave the bleachers to confront referees to start a fight. That is not normal. This was not a normal situation. You cannot focus all your attention on the result, but rather you need to focus on the cause. Player 13 from Harper Park should be removed from the league for the remainder of the season.

[01:55:28] That was on a clear signal the type of behavior is not tolerated. The Farmwell team played their hearts out and won the game. They only had six seconds remaining in the game and had a 14-point lead. Under what circumstances could you possibly justify Farmwell forfeiting this game? The action to forfeit the game was one-sided punishment.

[01:55:45] Farmwell was taking a loss when they actually won the game. We want the game awarded to Farmwell because they earned it, and we want much more appropriate punishment handed out to the Harper Park player number 13. Lastly, on 12-14, I sent a letter to Steve Topi talking about this very issue. I have yet to receive a response from Steve Topi.

[01:56:04] We met with members of the board, and we were told that it was doubtful that you would reverse any order that was made by PRCS. I don't think that's right, because I'm sorry your time is up okay thank you thank you very much um we did have two other people who signed up to speak on the um on the pedestrian issue paul I think it's that says cake cacock I can't cakel cakel okay and um mallory johnson and then we go to bob I'm sorry then we go to

[01:56:38] roger smith so paul cakel mallory johnson roger smith cakel that good evening good evening Thank you, everybody. I appreciate it.

[01:57:00] My name is Paul Cackel. I am a resident of Perceville. My sister is Alyssa Cackel. It's just sad. We really need your support.

[01:57:16] We would love for you to pass this bill. Supervisor Glass, thank you for meeting with us. We really appreciate the hard work that you've done for us. And Supervisor Kirshner, thank you as well.

[01:57:32] We have a problem here in Loudoun. This year alone, we've had 56 reported pedestrian-related crashes, 13 of which resulted in fatalities. Some of these fatalities happened with Loudoun County vehicles. In this day and age, you cannot go to a car dealership without buying a vehicle,

[01:58:07] without some sort of collision avoidance system. We've got to do a better job, especially with our county vehicles. There are numerous things out there that can help us and aftermarket things that can help us on county vehicles so that these things don't happen anymore.

[01:58:36] Now, unfortunately, the county has a lot of vehicles, and we understand that. But what about any new vehicle that hits the road, like transit, bus, maintenance vehicles, have some sort of collision capability?

[01:58:56] And maybe some sort of aftermarket kind of thing that can be done on some of our emergency equipment. Now, I had done some research, and real quick, some of these are very cost-effective, anywhere from \$500 to \$1,500.

[01:59:17] Now, when you talk about the amount of vehicles that we have in the county, that can be expensive. But I'm urging you guys to look at this and really consider it to see if it is a viable option.

[01:59:36] Mr. Kakel, thank you very much. Supervisors, I know that he and his sister, but under the circumstances and what they're discussing, and not only was he discussing, but he was giving options, I do not think it's inappropriate to let him finish all of his thoughts.

[01:59:53] But your time is up now. Yes, ma'am. Thank you so much. You were a police officer. Yes, ma'am. We've spoken many times. We have spoken about it. I do appreciate it, and you guys are an excellent example for some of the other towns. Thank you. So, as in personal.

[02:00:10] I'm not going to read in. He literally said it as in. Oh, no, ma'am. I have no problem saying what I've got to say. Clearly. Thank you very much. Thank you, sir. Mallory Johnson, followed by Roger Smith. Good evening.

[02:00:36] Good evening. Good evening, Chairwoman Randall, Supervisor Glass, other members of the Board of Supervisors, and especially to the family of Alyssa Cagle. My name is Mallory Johnson, and I am representing the Metro Walk Homeowners Association, which is the community directly adjacent to the Ashburn Metro Station.

[02:00:57] I appreciate the opportunity to speak tonight in favor of the three board member initiatives that pertain to the area around the metro station. I've lived in the Moorfield Station area for seven of the last 10 years, and I've seen the substantial changes to the immediate area as a result of rapid growth and development, including the opening just this month of a 450-unit apartment building a block from the metro station.

[02:01:22] The opening of the metro station has been a wonderful asset to the community. However, the high volume of traffic traveling to and from the station has resulted in the need for increased traffic calming and infrastructure improvements our immediate community has seen nearly 10 major accidents within the last year including one that occurred at one of the intersections noted in the proposed safety study just last week during an increased enforcement initiative last summer in coordination with the Loudoun County Sheriff's Office and more than 80 traffic stops were conducted and over 50 tickets issued in the

[02:01:58] immediate metro walk area surrounding the metro station. That's a huge number of traffic infractions. Because the area is served by a variety of jurisdictions, several HOAs, the Moorfield Conservancy, Loudoun County, and VDOT, this safety study is necessary to bring all stakeholders to the table and bring forth the necessary improvements to ensure the safety and multimodal needs of the area. I urge you to please move forward with plans to develop the transportation safety study for the area around the Ashburn metro station. Thank you, thank you, Miss Johnson, appreciate that. Um, Bob, um, Selah, I'm sorry, Roger Smith followed by Bob, Selah followed.

[02:02:38] by Gregory, um, Piero, good evening, Mr. Smith, good evening, so we get two minutes now after I've prepared two and a half minutes and didn't read the okay, I'll do the ad lib version then, uh, no introductions, uh, I'm here to talk about the DPZ work plan, the rural historic village, CPAM, a year ago designated, Lucketts, Peonian Springs and Willisville to be the first small area plans.

[02:03:13] they show up on the work plan as TBD right now, that's a shame, my request is that they get a high priority in the work plan as a project manager be assigned and the timetable be worked out because it's important. Why am I making this request as a Waterford resident? Well, they're my neighbors, and some of them have water and septic field problems that a small area plan might help to solve. However, there's a complicated matter of another plan to physically connect

[02:03:51] the water and waste porters systems of Peonian Springs with those of Waterford, and many people think that's a terrible idea. An alternative proposal has been developed by the Waterford Preservation Group, the WPG, and very soon you will receive a copy of that by email. This would immediately identify homes that need help and provide small-scale solutions. But in the long

[02:04:21] run, we recognize that small area plans are a way to deal with longer-term problems that involve more than the small area plans can deal with. So I'm asking the DPZ to give Peonian Springs a high priority in the small area work plan and to coordinate with General Services and the WPG and on wastewater issues.

[02:04:50] Thank you. Thank you, sir. As Mr. Smith noted, two things have happened last year. We decreased the amount of time that the board comments are from five minutes to three minutes, so now we speak for two less minutes, and that's probably a good thing.

[02:05:08] And we've decreased public comment from two minutes, 30 seconds to two minutes, and so the public is a 30-second decrease. greg piero followed by james russell followed by craig dobs hi i'm greg perio i'm a resident

[02:05:42] of sterling i live about 150 yards from the vantage 2 data center which is the only data center that has not connected to the grid and it has its own jet turbine power plants that for almost a year now has been giving out intolerable noise it causes headaches my neighbors tell me that they get headaches from it their children have a hard time sleeping at night one quarter mile away in our hoa one of our fellow hoa board members has had to put mattresses against his

[02:06:20] window to keep out the sign and he just told me that he's now bought for his own bedroom uh for \$250, a plexiglass cover on his window to keep out the sign. And we need relief from this.

[02:06:38] And one more thing, there are no more birds in the area. They don't, the sound has driven them away. So we, it's affecting our environment in that way too. So what we would like the county to do is to establish a sound noise monitoring uh stations to monitor the stations and enforce the noise ordinance and also we would like karan sayings and phyllis randall to organize a community meeting with vantage so we can talk about the problem and try to get some solutions

[02:07:17] done it's been going on for too long and uh we're concerned about the property values you can imagine who's going to move into a neighborhood with this kind of sound and we need to know when they're going to be connected to the grid we get a lot of frankly information that turns out not to be true from these people thank you thank you sir bob um selah followed by james russell followed by craig Dobbs. Good evening, sir. Yep. Hello. Thank you for having me. I'm echoing what Greg was saying.

[02:07:51] I live in Sterling, Virginia. And when they were going to put this data sensor in, I wasn't against it. I'm not really against data sensors. I understand the need for them. But what they didn't tell us they were going to do was have it off the grid altogether. And it's this gas-powered system. And it just makes this high-pitched noise. I invite you to come and listen to it. It is awful it's like this 24 hours a day seven days a week 365 days a year it's worse when the winds come from the south and it carries the sound towards where the houses are my house is about

[02:08:28] 100 meters from the data center so it's right against it like i said i wasn't against it when it was first built but no one said it was going to have this noise attached to it that's constant It shouldn't be allowed anywhere near a residential area, quite frankly.

[02:08:44] It should be illegal to have something like this that makes this type of noise all the time right by residential units. This would be fine in an industrial area, but not any place near housing areas. What Greg said and what I'm asking is you get sound units built around the area, like where the houses are, And if it goes higher than the decibel volume that it's supposed to be, there's some remedial action that gets taken care of because it's not sustainable.

[02:09:13] I mean, the property values are going down. Just the quality of life goes down, too. It's just not good. So thank you very much. Thank you, sir. Thank you. James Russell, followed by Craig Dobbs, followed by Chris Tandy. Mr. Russell, are you here?

[02:09:30] Going once, going twice. Craig Russell, okay. Craig Dobbs, followed by Chris Tandy, followed by Peter Weeks. - Good evening, Mr. Dobbs. - Good evening.

[02:09:46] My name is Craig Dobbs. I am a resident in the Sterling area, along with my other members over behind me. I live about 1200 feet from the data center. There's the CBP office between me and the data center, and I have the same issues as they do. We're, as a community growing concerned with all the noise pollution going on, we can't sit outside on our decks, can't open the windows in the spring or the fall when it's nice out because all you hear is this noise.

[02:10:16] It's constant. It's 2.8 kilohertz. It's well above anything else you can hear, and it's just... Was that from your home that you did... Yes, that was 1,200 feet away with another building in the way. We can hear it on HOA anywhere. We can hear it on the WNOD Trail. It's everywhere.

[02:10:35] So it's not just a low hum. So that sounds like jets taking off from Dulles. Everything else is a high-pitched squeal that just doesn't matter where you are walking around, you'll hear. Studies from WHO, EPA, between 2011 and 2022 have linked this to chronic illness issues, high blood pressure, cognitive performances.

[02:11:01] In 2015, EPA recommended that it's a 45 DBA level for any residential area, not 55. I know that's what our current ordinance is, so I urge you to take a look at that again. Again, we're worried about our home values.

[02:11:17] We're worried about just being able to be outside anymore. It's just hard, right? I have a deck. I have a patio. I want to be outside, but we just can't. So we urge you, yeah, please have somebody come out at least to inspect the area.

[02:11:33] We do wish that there were some physical monitoring stations that we could be built in our community so we could monitor public data so that way we can hold these people accountable. Thank you very much. Thank you very much. Thank you very, very much. Chris Tandy, followed by Peter Weeks, followed by Marvin Phillips.

[02:11:54] Mr. Tandy, I do not see Mr. Tandy going once, going twice. Peter Weeks, you will be followed by Marvin Phillips, followed by Sabrina Pernas.

[02:12:10] Good evening, Mr. Weeks. Good evening, Chair Randall and fellow supervisors. My name is Peter Weeks, and tonight I'm wearing two hats. First, as president of the Blumont Citizens Association and vice chair of the Loudoun Historic Village Alliance, I applaud the proposals from the Department of Planning and Zoning for executing the small area plans for the historic villages, starting with Lockett's, Willisville, and Peonian Springs.

[02:12:43] We are pleased that DPZ has finalized contracts with the consulting firms and will initiate discussions with stakeholders. So very positive feedback there. Second, as president of Friends of the Blue Ridge Mountains, I express my grave concerns for looming threats to the preservation and protection of our beloved mountains.

[02:13:04] One section of the new ordinances was put off for later consideration. That's centered on what types of uses were permitted in the MOD. The current permitted uses date back more than 30 years and include 20 potential uses in AR1 and AR2, such as rural resorts, restaurants, and even sawmills.

[02:13:24] Unfortunately, now we are witnessing the consequences of that decision. As an example, adjacent to Sky Meadow State Park and the Appalachian Trail along Route 50, there is a preliminary

proposal to build a resort complex which would include a restaurant, spa, event center, and two hotel structures.

[02:13:42] The developers have intentionally cited all construction in Loudoun because Loudoun has the more permissive mountain ordinances. So here we are today, should this commercial entity be successful, it sets a very bad precedent.

[02:13:57] This is precisely the reason that Friends of the Blue Ridge Mountains, PEC, Piedmont Heritage, and 16 other organizations have stated from the beginning that future non-residential, non-agricultural uses must be prohibited in the MOT.

[02:14:15] Thank you. Thank you. Thank you, Mr. Weeks. marvin phillips followed by um sabrina pernas followed by samantha phillips marvin phillips are you here he's on the phone okay yeah we're ready for you sir mr phillips we're gonna we're gonna take a break we're gonna start your time over

[02:14:50] um check check your phone because we're not hearing you real well so let's let's try it one one more time uh am i clear now is that better that's better okay so there's um a forfeit handed to farmwell for we were in a competition against another basketball team and uh throughout the game there was some uh foul play going on i will call it a unnecessary roughness and um it happened throughout the course of the game and then it led to the end of the end of the game um unsportsmanlike

[02:15:28] conduct file which caused one of my players to almost get severely injured um the results in it ended up being a forfeit um which means that we would take the loss and at that time and during the game uh it was about six seconds to go on the clock and we were up by 14 points um the blame was put on the parents for coming onto the floor after the incident had happened um and i feel like the situation was maneuvered from the referees the officials of the game to the players and I think that the officials have an accountability throughout the game to make sure that the players are safe

[02:16:06] it's a safe environment for the players just as the parents does and any spectators that are watching but the game escalated out of control which led to the end of the game situation and and we were handed a forfeit I don't think that Farmwell deserves a forfeit because Farmwell won the game, actually. And now that the forfeit was granted, that means that Farmwell suffers a loss along with the other team, which was the aggressor throughout the entire game. I think that the concentration should be more geared towards the officials going forward to understand how to take

[02:16:41] control of games and to make sure that foul play doesn't continue to happen so someone will not truly get severely injured um also i feel like uh the message on one side um is geared towards the parents not taking accountability for the kids and then on the other side it's the kids having to take accountability for the parents um all in all i i don't stand with the forfeit um again because farmwell ends up taking a loss and we are punished we're being the ones that's being punished and i thought it was a pretty classy game for my side sir thank you thank you

[02:17:20] so much um thank you so much your time is up um sabrina pernas followed by samantha phillips followed by parisa hashmani good evening good evening um i'm just here to formally express my deep concerns and dissatisfaction with how the situation during the farmwell harper park basketball game was handled, the behavior displayed by a child who acted

[02:17:56] aggressively during the game was not acceptable. What most is troubling is that the behavior was never or the behavior was now framed in a way that portrays that the child ultimately turned to the

victim rather than being held accountable for the actions that sends the wrong message to the rest of the players, families, and coaches that were involved. Additionally, the lack of intervention by the referees significantly contribute to the situation escalating calls were not made when they should have been made allowing aggressive behavior to continue unchecked this lack of enforcement allowed the game to get out of control and fail to protect the safety and

[02:18:35] well-being of all players aggressive behavior in youth sports should result in clear and appropriate consequences and referees play a critical role in maintaining order and sportsmanship failing to address such behavior at the moment only undermines the integrity of the game but also sets the precedent that this type of conduct is tolerated. We strongly believe the situation needs to be reviewed in full including both incidents itself and how it was officiated and consequences

[02:19:10] and further consequences should be put in place, steps taken to ensure further games are managed appropriately thank you thank you um uh parisa no no no no i keep losing my place samantha no samantha phillips parisa hoshmaki and then um if i say your name wrong i i'm going to apologize in advance i think it's buasha i i i'm going to have you say your name when you come up here because

[02:19:46] i'm i do not want to say your name but the next one is pamantha phillips are you is she in the yes hi can you hear me we can hear you okay uh yes my name is samantha phillis i'm calling on behalf of fsbl regarding the game played on december 7th between farmwell and harper park i'm requesting that the forfeit be removed from the team the incident kind of stems from a situation that could have been seen from before our previous encounter with this team we had an

[02:20:22] incident with this player last year, the same player, number 13, where he caused a player on our team to be injured and have to wear a leg brace. This year, he went a step further and was seen by the stands and not by the refs making plays that could have impacted a kid's future and being able to take part in a school-provided function that they love, basketball. We're going forward and the kids are getting bigger and I understand that but I would like for the referee

[02:20:56] to take more accountability for missed calls and a behavior like this that transponds beyond one type of or beyond years needs to be looked at by both the refs and by the county if students are going to be punished for having I guess parents having to intervene for the protection of their children. So I'm requesting that the game, the forfeit be removed, but also that the referees have to take responsibility for not just missing the calls, but allowing situations to escalate

[02:21:29] and students to have to take the responsibility over the referees responding to ill-managed play by both the player and I'm assuming by the coach who has written an email letting his students know that number 13 is welcomed back after only having a two-week suspension from the games.

[02:21:54] Okay. Thank you very much. Your timing was perfect. Thank you. Parisha, that was Samantha. Parisha Hashmakee, and then the last name, the first name is B-H-U-P-E-S-H, and I just do not want to, okay, you'll be next. I just don't want to mess your name up, sir. Hello? You're ready when you are. Good evening, board. I'm also speaking on the Farmwell gaming against Harper

[02:22:27] Park. I am a parent of an athlete on the eighth grade Farmwell middle school team, and I was there for the entirety of the game that resulted in the forfeit decision. I attended the entire game and personally witnessed repeated aggressive behavior by Harper Park, player number 13. Despite these actions the referees did not adequately intervene or address the unsafe conduct allowing tensions to

escalate throughout the game the lack of proper officiating directly contributed to the incident that followed that could have been prevented with earlier intervention focused on player safety

[02:23:06] while the board may view this incident as involving actions from both sides the farm well student athletes played by the rules and earned their win on the court penalizing the Farmwell team reverses a hard-earned victory and unfairly punishes students who were not responsible for the incident. Yes, a parent did step onto the court after their child was pushed into the stands. However, their reaction was emotional and understandable under the circumstances.

[02:23:40] No one was injured, no punches were thrown, and unfortunately no apologies or remorse was offered by the opposing sides, neither from the player or the coaches. It is difficult to understand why formal students are being penalized for the actions of the opposing players and the failure of the game officials to manage unsafe behavior. I respectfully request that the board reconsider the forfeit decision, uphold the original game score, and reinforce a commitment to fairness,

[02:24:15] accountability, and student-athlete safety. Thank you. Thank you. Sir, you come forward and You pronounce your name for me, please. And you're going to be followed by Natalie Gramblin and followed by Emily Johnson.

[02:24:32] Good evening, Gord. Thank you. My name is Bupesh Wadhaven. It's a little easier. Thank you. Thank you for the time. I appreciate it. I'm one of the coaches for the Farm World Basketball team. And this goes beyond just the win and a loss. Yes, we're going to argue that we won.

[02:24:49] We should get that win. But it goes far beyond that. It's taken us several weeks to talk to these young men about actions and consequences and how, as a coach, a dad coach, teaches young boys, young men, what's the right thing to do?

[02:25:06] What is the right thing to do? Your actions have consequences. Now, number 13 on that team, perhaps his coaches could have done a better job in teaching them. Sure. But we're responsible for our own boys. They did the right thing.

[02:25:21] They played hard, played by the rules, like Parisa said, and they earned a win. But we as a county, as a board, need to do a better job in training and teaching these referees, officials, not just putting them through a five-minute class and, hey, here's your certificate and go on.

[02:25:41] Let's do a better job in protecting our kids, teaching them the right way to do things. Again, it goes far beyond basketball. Good life lesson. I do the right thing, you'll be rewarded the right way. And, yes, we deserve a win. We do. but as as as our team will tell you and our boys will tell you we'll go back out there tomorrow if we need to to play them again because that's the heart that they have and and and reaffirming a loss is only beneficial for those boys they're down they're going to do a dirty play again hey we're going to get a loss they're going to get a loss so again goes far beyond the wins and losses

[02:26:21] but let's help them learn that there's a right way to do things and a right way to live Thank you. Appreciate it. Thank you very much, sir. Natalie Gramblin, followed by Emily Johnson, followed by Gabriela Ramirez. Good evening.

[02:26:37] Hi. Good afternoon. Thank you for giving me the time to speak today. I'm here as a parent and a former athlete. In my experience, middle school years are where you start to fall in love with your passions and build your identity. And it was probably one of the most exciting moments for me to hear my

son say he wanted to play the game that I love, that I grew up playing, that showed me the world so to have him want to dive into a sport that I love so much I take passion and pride in that and when we have kids that are on the court for the wrong reasons it takes the joy and the safety away from other children who are doing the right thing you know

[02:27:16] that vision that I had was damaged when you have players that you know play dangerously and allow things to go unchecked so with that said on December 7th my son was blindsided he was shoved into the bleachers in the final seconds of the game that moment didn't happen in isolation it happened as you've heard multiple times throughout the game starting in the first quarter it just wasn't addressed and you know we're standing up we're screaming we're yelling we're doing everything that we can in the appropriate spaces that we can and it just didn't work it ultimately resulted in a double forfeit because I chose to step onto the court after my son was

[02:27:52] pushed into the sands I didn't know what to do in that moment I wasn't a player I wasn't a coach I was a parent who saw their kid be assaulted and it's just that simple any parent would step up when it happens three feet away from you and you know that was my decision not theirs they did what they were supposed to do they played the game they didn't retaliate they didn't fight back they played by the rules and they were met with continuous actions that did not support the rules of the game and did not support their safety at that point I felt like I had to intervene there six seconds i made sure that everyone was safe and i directed my attention to the referees who

[02:28:32] in my opinion failed them i'm asking that you guys please give them their win back because that was their win it was my decision to step on the court and make the playing field unsafe so they say i think it was already unsafe so i just ask that you consider that and and consider punishment for the student thank you thank you thank you miss grimlin um emily johnson followed by Gabrielle Ramirez followed by Sarah Bazar who is is is she in the room or she online she's online okay good evening good evening good evening supervisors my name is Emily Johnson on behalf of the Piedmont Environmental Council you've heard from some speakers tonight who live beside

[02:29:12] Loudon's only microgrid data center opting to run on self-generated power until full grid power is available these residents have critical insights at PEC we expect other communities across the county will rapidly face similar situations as data centers look to co-locate natural gas generation or banks of non-emergency tier four generators.

[02:29:31] We must learn from this case study and act now to protect residents. That means taking bolder steps in a public effort to establish upfront countywide expectations for onsite generation with monitoring and a focus on mitigation for those currently impacted. That means addressing persistent tonal noise differently in our noise ordinance.

[02:29:49] It was designed for temporary elevated noise So it specifies, for example, testing intervals of just 15 seconds. That's not working for enforcement and certainly not for livability. But neither are we presuming the necessary changes. Please meet with the community, learn more, and earmark a portion of data center taxes to install permanent noise monitoring equipment.

[02:30:11] Gathering data in partnership with homeowners would clarify the problem, provide widely relevant data, and model responsibility as a leading locality in this industry. Tackling this problem also means being an intermediary with the Virginia DEQ since it issues the air quality permits for turbines and generators. In the interest of Loudoun's health and safety, you can make a strong case before the state

either that these turbines should be considered a major, not minor, pollutant source due to proximity and density, or at the very least that minor sources within half a mile or so of residential neighborhoods should have a public hearing provision.

[02:30:42] These residents were caught off guard, and that's not right. On-site turbines and generators are only going to run more frequently across Loudoun given pre-emergency load management measures from PJM, wider definition of emergency situations from the Virginia DEQ, and the industry search for alternative power. We need to get our noise, air quality, and notice standards right, insulating residents from negative impacts and acting decisively to provide these people relief.

[02:31:06] Thank you. Gabriela Ramirez, followed by Sarah Hussein Bazar, followed by Omar Ayazi. Good evening. Good evening. How are you? Good.

[02:31:21] Dear members of the Board of Supervisors, I'm standing here to respectfully ask the board to reconsider and revoke its decision to impose a forfeit on our school's recent basketball game win against Harper Park. This basketball league represents months of early mornings, late practices, discipline, teamwork, and sacrifice.

[02:31:38] Our students balance academics, family responsibilities, and personal challenges while committing themselves to their school and their team. To have their efforts erased by an unfair forfeit has been devastating to them. Just with six seconds remaining in the game, our team was winning by 15 or more points after playing with discipline and integrity.

[02:31:59] Throughout the game, our players endured repeated punches, hits, and kicks from a player of the opposite team. Despite this ongoing aggression, the referees took no meaningful action to stop it or protect the players on the court. In those final moments of the game, one of our players was pushed and thrown into the bleachers.

[02:32:18] This was not an incidental contact. It was an intentional act that placed a child in real danger. At that moment, his parents reacted instinctively, stepping onto the court and protecting their son after watching him being assaulted repeatedly without intervention.

[02:32:34] While we understand that parents should not enter the court, it is impossible to ignore the context. Our parents were not acting out of anger or hostility towards the officials. They were acting out of fear for their child's safety. Any parent placed in that situation would struggle not to do the same.

[02:32:51] The board's decision does not reflect accountability. It reflects an outcome where the innocent is being penalized with the guilty. Our players did nothing wrong. They followed the rules, showed control, and won the game decisively. They played the game with good conduct, endured abuse, and still prevailed.

[02:33:10] To forfeit their win is not only unjust, but extremely discouraging to our young athletes who are learning lessons about fairness, integrity, and responsibility. To erase their victory is punishing them as if they were the aggressors. Please allow them to trust in the system that is meant to protect them.

[02:33:27] We respectfully ask the board to reconsider the ruling. Thank you. Thank you. Super Bowl, I'm letting things go a little longer because our first meeting We went from 2.30 to 2.00, so maybe not everybody got that, but it's two minutes, and I believe in meetings further from here, I will be, so, but it is two minutes, everybody.

[02:33:51] Ms. Bazar is online, and then she will be followed by Omar Ayazi, followed by Robert Griffin. I do not have Sarah Bazar on the line.

[02:34:07] She's not. Mr. Ayazi, are you here? good evening sir good evening it's nice seeing you um after mlk day uh but i put my name down but i have someone else who's speaking on behalf of my team is that okay if i bring them up instead speaking on behalf of your team yes like there's a group oh you're there's a group there's a group but i put my name down that is fine okay we can restart this time yep hi good evening everyone uh i came by tonight to briefly share what my experience has been like initiating the traffic

[02:34:46] calming i live in sherryland run in the algonkin district and last february as part of my neighborhood's board of directors we put in our request through our district supervisor's office it took around two months for the gtci to acknowledge their request and another month and a half to to go by for them to schedule a meeting explaining the process and then after the summer when lcps was at the start of the school year we were told the data collection would begin and that took place this past November so like two months ago. After almost a year we're still waiting for them to hold the meeting discussing the results of the speed study and

[02:35:23] the next steps. My concern tonight is the time that it takes for the process and in the time since we've had a new project manager and Loudoun County announced a new director for the DTCl So whenever we have resident form, people are asking me for updates.

[02:35:40] So just to tie this into the current events in the Sterling District last month, pedestrian was struck and injured in a residential crossing. And I reached out to the Christie Maple, Supervisor Sane's office. And even DTCl hasn't responded to her yet.

[02:35:58] So for any like steps that we could take to make the road safer. So tonight, I just hope to see some improvements, you know, that could be made in the way that these matters are handled between our district supervisor and that department, the DTCl department.

[02:36:15] All right. Thank you. Thank you. Thank you very much. And our last speaker is Robert Griffin. Mr. Griffin.

[02:36:31] Thank you, Madam Chair. When I was last here, before I broke my hip and had two and a half months of recovery, you spoke and interrupted a woman who overran her time, which kind of is the rules.

[02:36:49] But then you let Ms. Briskman come down and interrupt the public speaking time. That's against the rules, I think. You know, she had to clear her name that she wasn't one of the people who cheered for the death of Charlie Kirk.

[02:37:09] And Mr. Rogers, when I talked to him about the breaches of etiquette, he explained to me that, yeah, council members like Mike Turner can breach them all. Ethics, there's no enforcement. There's no penalty.

[02:37:26] So everything I say is true just can't be enforced. But if he breaks the law, then something can be done. And, you know, all these ethics rules that he has broken would be like millstones around your neck, Mr. Turner.

[02:37:43] But if you look at that, when Christ cited that, he didn't say he was going to place a maelstone around your neck. No, he did not. But my point is, you, Madam Chair, broke the rules, and they are not

codified law in Virginia.

[02:38:01] So if I turn around to greet the public and say how nice they are, I am not criminally doing anything. And there are no rules to prevent me other than the rules in your mind, which you allowed Brisbane to break and which you have allowed others to break with impunity.

[02:38:27] And if I want to address the public, that is my right. Your privilege is to govern this chair. It's my right. And you are interfering with my right, constitutional right. Mr. Griffith, your time is up. Mr. Griffith, your time is up.

[02:38:47] Mr. Griffin, I do not want to call you out of order, but I will call you out of order. Mr. Griffin, you're out of order. So just to be clear, the board, as a board, not me, not any particular person, as a board, we have what's called rules of order.

[02:39:06] And the rules of order do not allow people who are speaking to speak to the audience because it can get out of hand very quickly. You can get cheering and jeering, and then that gets dangerous. And so it is my job to enforce the rules of order that the entire board has voted on.

[02:39:25] And that's what I will do no matter who is speaking. Thank you. Supervisors, what we're going to do next before we take a break, we're going to go on and do our comments now. And Ms. Glass, you know, we may be able to go in and do your item.

[02:39:42] I don't think it's going to take very long. Let's go in and get that item done before we take a break as well. so let's do let's do public comments and let's take up that item and then we will take a break all right public comments first public comments for the new year let's see who goes first mr crony you go first uh no nominations and disclosures chair or do disclosures okay no nominations right no okay no no nominations i'm gonna do disclosures okay um thank you chair Randall. So on January 20th, I met with Paki Crown and Steve Donchus regarding the Pantovic

[02:40:21] property rezoning. On January 12th, I met with Mike Romeo, Stephen Clinton, Chris Avery, Oswaldo Ramos, Tisha Awar regarding the Fleetwood Road Child Care Center application. On January 15th, my staff met with Aaron Swisholm regarding the Clear Springs proper amendment. On January 12th, members of my staff met with Aaron Swisholm, Jeffrey Brown, and Bill Junda regarding the Commonwealth Center Motor Club. On January 8th, I met with Colleen Gillis, Ben Wales, Brian

[02:40:54] Coughlin, Russell Powell, and Tommy Roche regarding the West Belmont application. All right, my board comments. With the passenger fatality in Brambleton on Olympia Drive and two pedestrian fatalities, one in a school walk zone, I want to express my commitment to slow down, to slow traffic down with community traffic calming and to prioritize safe pedestrian crosswalks and sidewalks. We heard tonight from the family of Alyssa Cackle, who started a petition to support

[02:41:28] multimodal transportation safety improvements on roads around the Ashburn metro station. with our continued growth and development around the metro, there really is a need for traffic calming and improvements for pedestrians, and I support that. Recently, Sheriff Chapman gave the following statistics. In the last 90 days, there have been 14 pedestrian-related crashes, including two fatalities. In 2025, there were 56 pedestrian-related crashes, 13 of which were fatal.

[02:42:02] Ten of those victims were in the crosswalk where they were struck. I believe DTCI should focus limited resources to existing roads that need improvements for driver and pedestrian safety. We have

programs that we need to further prioritize, including safe passages to school, the intersection improvement program, and sidewalks and trails program.

[02:42:26] New proposed programs that would target problem areas include safe crosswalks and community traffic calming. I hope my colleagues will join me in this call to prioritize driver and pedestrian improvements on our existing roads, especially improvements in school walk zones and targeted problem areas.

[02:42:50] I do want to let people know the town of Middleburg will launch a year-long celebration of the 250th anniversary of the founding of the United States with an opening event on Friday, January 23rd.

[02:43:07] The celebration will begin at 4.30 p.m. at the Middleburg Town Hall, and I hope to see residents there. Thank you. Thank you, Mr. Crony. Ms. Bricksman. Thank you, Madam Chair. By way of disclosures, on January 20th, I met with Curata Partners on Cochran Tech Park application. Also on January 20th, I met with Walsh Kalushi on the Village at Clear Springs Proffer Amendment. We have learned through a data collection project with UC Berkeley that 70% of those detained and arrested by ICE do not have criminal records.

[02:43:44] The data is similar for those transferred to ICE from our adult detention center. I have reviewed the data for Loudoun from 2023 through October 2025. Not one person who was transferred to ICE from Loudoun County's ADC is flagged as an aggravated felon. In fact, many detainers were based solely on criminal charges, raising concerns about their being denied their due process.

[02:44:09] Even DHS Secretary Kristi Noem stated this past weekend that those arrested or detained may have convictions or charges, meaning that simply being charged with a crime can subject someone to arrest or detention. Let's think about that. It means that you can be charged even on trumped up charges and be subjected to arrest and detainment and deportation. I know that some think that the 287G agreement that our sheriff has with ICE means that we are better off. We are seeing less conflict. We are not seeing the same kind of ICE activity on our streets and

[02:44:43] we certainly have not seen residents physically harmed or murdered like Renee Nicole Goode. But I ask, just because people are being disappeared quietly, does that make it right? I believe it does not. Doing it quietly, in my opinion, is just as bad as breaking down doors and pulling people over just for the color of their skin or the accent with which they speak.

[02:45:06] I will continue to advocate for LCSO to end its agreement with ICE. LCSO has stated it only checks for ICE detainer orders when they check someone into the ADC. But as I have described, these detainers cannot be trusted.

[02:45:22] Our tax dollars are being used to help this unconstitutional and heinously racist mass deportation effort by the Trump administration and Stephen Miller. Sheriff Chapman is asking us to trust ICE. I cannot unsee what they have been doing across our country, and I want no part of it.

[02:45:43] If our country still goes the way that I think it is, many people in years from now will say they were against this. Everyone will say they were against this. They were against the 287G agreements, and they were against the mass deportations. But I am on record right now saying that I am against it now, and I want the DHS ICE agreement with our Sheriff's Department canceled.

[02:46:08] as we begin the new year there have already been 674 total gun deaths 17 mass shootings the deaths include nine children under the age of 12 and 45 children ages 12 to 17. thank you madam chair thank you miss brixman mr letourneau thank you madam chair disclosures on january 8th my staff met with representatives of commonwealth center motor club ledgy 2024 0016. on january 21st my My staff spoke by phone with Molly Novotny of Curata Partners about Cochran Tech, Leji 2024 0037.

[02:46:46] Weather permitting, which it may not, I will be holding my next Dulles Direct Town Hall meeting on Tuesday, January 27th at 7 p.m. in the auditorium at Freedom High School. This is actually a traffic safety town hall meeting. It was scheduled to be such quite a long time ago, as it turned out with some of the incidents that have happened.

[02:47:06] It's timely, but it's specifically to address traffic concerns in the Dulles District. So I'll be joined by representatives of the Loudoun County Sheriff's Office, including the Traffic Safety Deputy, that's a new deputy assigned to our station, as well as representatives from VDOT to talk about some traffic enforcement issues, some hotspots, and some of the other sort of structural issues, including signals and things like that, that are underway in our area.

[02:47:35] so I hope residents can't attend, and if they cannot, it will be broadcast on Facebook Live. The video remains on our website or on our Facebook page so that residents can view it. And, of course, I will be addressing other topics and taking all questions.

[02:47:51] I'd like to thank all the speakers that came out tonight to talk to us and particularly express my condolences to the family of the tragic victim and around the Ashburn Metro Station. At the risk of wading in a little bit on one of the topics discussed tonight, I will just note that I'm in my sixth season as a middle school youth basketball coach.

[02:48:18] I've seen a lot of things. I've seen, I've had players who have committed aggressive fouls, overly aggressive fouls, and I've had players who have been on the other side of it. So I absolutely understand frustration that can occur when those things happen.

[02:48:34] My observation after several years of doing this and several years before that of coaching baseball is that the players take their cues from the adults. And so while I certainly understand frustration about a double forfeit, I also know that if parents model the behavior that we want players to have, it helps everybody in the long run.

[02:48:58] And so, you know, I always tell the parents of the players on my team to not even interact even vocally to the officials from the stands. That's my job as the coach because it escalates things. And so, you know, the Board of Supervisors does not have a mechanism to even address something like this.

[02:49:17] It's not something that comes to us. But I know that it's a topic that PRCS spends a lot of time on in terms of sportsmanship. But it's just important that all the adults really try to model the behavior that they want at all times, even when they're frustrated when something's happening on the court.

[02:49:34] Thank you, Mr. Letourneau. Ms. Glass. Thank you, Madam Chair. Some disclosures that I have here is on Wednesday, January 7th, I met with representatives to discuss the Commonwealth Center Motor Club application.

[02:49:54] On Wednesday, January 7th, my staff met with representatives to discuss the West Belmont application. On Wednesday, January 7th, my staff met with representatives of the Digital Realty

application. On Tuesday, January 20th, my staff met with representatives to discuss the Cochrane Tech application.

[02:50:16] And today, my staff spoke with representatives for the Commonwealth Center Motor Club application. First I'd like to thank all of the broad-run constituents that came out today and spoke on your concerns regarding what happened at the basketball game. I will be reaching out with staff to have a conversation and if you would like I would have a conversation with you all as well.

[02:50:52] During the consent agenda, I had a couple of things that come through. One was the Moorview Parkway renaming, and that is for staff to determine the estimated cost and identify the funding source to rename Moorview Parkway as Ashburn Village Boulevard.

[02:51:16] I appreciate Dr. Claude Moore and the infrastructure named after him, but this particular area gets confused with Moorfield Boulevard there are a lot of names of streets there that has more in it so it's it becomes a bit confusing so that's one thing that I'm looking to the next thing that I would like to talk about is the changes in the joint committee that were made on the work plan.

[02:51:50] One was to have a conversation with the school board regarding the Eastern Community Arts Center. Next is the addition of the Sheriff's Office GED program at the Adult Detention Center.

[02:52:06] We're gonna have a discussion on that. The next one is the funding to be provided for the D.A.R.E. t-shirts for this year and moving forward. The next one is that we will receive an update regarding the safe passages to schools and that will be provided to the committee in March.

[02:52:29] And I'm also excited about the county streetlight program that we have that we're going to have. And we've had several community requests for streetlights in Ashburn, specifically around the metro station and areas throughout the HOAs.

[02:52:45] My time is up and I'll make comments um on the Ashburn metro station safety study safety study later thank you Mr. Kirchner thank you Madam Chair and thank you everyone who gave public comment for coming out um a couple of disclosures January 15th my staff and I met with the applicant for the village at Clear Springs and then also on January 15th my staff met with Jim Kirk about the Duval Specs application a couple of things coming up in Catocton weather permitting um the Franklin Park Arts Center in Purseville is showing its independence art exhibit now through February 1st.

[02:53:20] It's free and open to the public. Great Country Farms Spring Chick Raising Program will start soon with pre-orders opening on February 1st. On January 30th and 31st Franklin Park will hold its annual Cabin Fever Film Festival. And there's two more events that are also on January 31st.

[02:53:39] Dirt Farm Brewing will host a 5K and a 10K run, and the proceeds will go to the Loudon Career Firefighters Foundation, and the Lovitzville Community Center will hold its snowflake ball, assuming they're not snowed out. Tickets are on sale now. Attendees will come in fancy attire, ready for an hour and a half of wand-making, tiara, crafting, and snacks.

[02:54:03] Of wand-making? Tiara, crafting, and snacks, yeah. So, you want to go to that? Oh, you say what? You say wand making? Yes, wand making for the snowflake ball. So anyway, sounds like the chair is interested.

[02:54:20] Any other questions before I continue? For those of you who spoke on the small area plans, I agree. We want to try to move these along. I know that our staff is working diligently on that, and I am

anxious to do that.

[02:54:37] I am, myself, I've actually had a number of meetings recently concerning the water and sewer projects for the Waterford and Paonian Springs, and we are looking for some improvements to some of the recommendations that were made.

[02:54:55] I think we are coming with some good ones and a lot of great input that has come from the community, and so we'll continue to walk down that path very carefully to really make these villages great places to be, preserving what we have there but also making sure we have uh working water as well as uh act working sewer systems in my last few minutes i do want to extend and i know we're going to talk about the item but i thought it was appropriate here um the caco family obviously i think i don't know if they're still here paul's here i've known paul um brother of the deceased for many many years and paul's just tremendous police officer we've done a lot of did a lot of cases back when i was

[02:55:33] just cutting my teeth in the prosecutor's office knowing each other for many years and when i found out about this my heart just broke and my prayers and my thoughts and obviously my support as a board member for the initiative that's before us tonight is with you so thank you for coming out tonight and sharing and god bless you thank you thank you miss glass your light's still on is there a reason your light's still on okay thank you i think we're to mr saints thank - Thank you, Madam Chair.

[02:56:02] Disclosures, January 15th, I had a phone call with Colleen Gillis of Carada for their application with West Belmont Park. And that is it on disclosures. In regards to what was said tonight, as I usually say, thank you to everybody that came out today to speak on the different issues that are near and dear to your heart.

[02:56:24] I really appreciate it because you could have chose to be anywhere else, but you chose to be with us here to advocate on the issues that are pertaining to you. So I really appreciate you taking the time to do so. And since we just celebrated another Dr. Reverend Martin Luther King holiday, I'd like to read an excerpt from one of his speeches.

[02:56:47] And I think it pertains to what's going on today in our country that we see on the television, here on the news every single day. All we say to America is be true to what you said on paper.

[02:57:03] If I lived in China or even Russia or any toilitarian country, maybe I could understand some of these illegal injunctions. Maybe I could understand the denial of certain basic First Amendment privileges because they didn't, they hadn't committed themselves to that over there.

[02:57:19] But somewhere I read of freedom of assembly, somewhere I read of freedom of speech, somewhere I read of freedom of press, somewhere I read that the greatness of America is the right to protest for right. And so just as I say, we aren't going to let dogs or water hoses turn us around.

[02:57:39] We aren't going to let any injunction turn us around. We are going on. And that was from, I don't know if anybody up here can guess which speech? Well, besides Chair Randall, can anybody else? But if not, that is from what is now dubbed, I've been on the mountaintop speech.

[02:58:03] And that's in the middle of the speech. Also in that speech, he talks about the Poor People's Campaign that actually still lives on to this day. The reason why I picked this expert out of the speech is because most times on Martin Luther King Day, we only just hear about I have the dream, and that's about it.

[02:58:22] But there's a whole lot of other content that Dr. King was speaking on regarding, like I said, mentioned before, the Poor People's Campaign, pay rights, unionizing, and human dignity. So I encourage everybody to go back, read some of the other speeches that he has that are not as well known, because Dr. King covers a lot of information, a lot of ground that, as I mentioned earlier, is very relevant to this day.

[02:58:51] So thank you. He wouldn't let me answer, but he wouldn't let me answer. I can give a speech. Mr. Vice Chair Turner. Thank you, Madam Chair. On December 23rd, January 21st, my staff spoke with Steve Johnshus to discuss the Pantovich property application.

[02:59:12] Wednesday, January 7th, 2026, I met with Aaron Swisholm from the land lawyers, Bill Junda from Gordon, and applicant team members from Faisal Shurandi and Jeff Brown to discuss the application for Commonwealth Center Motor Club. On Thursday, January 8th, 2026, I met with Frank Hardesty, a citizen of Hiddenwood Assembly, to discuss the Hiddenwood application.

[02:59:33] On Tuesday, January 13, 2026, I met with Tommy Roche, Ben Wales, and Colleen Gillis from Curata Partners, Brian Conklin, Russell Powell, and John Snyder from TAPCO to discuss the West Belmont application. On Thursday, January 15, 2026, I met with Colleen Gillis from Curata Partners and Frank Palmer, the applicant, to discuss the application for National Conference Center.

[02:59:54] And on Tuesday, January 20, 2026, I met with Paki Crown from Bowman and Steve Johnson from Donchus Law and Branko Pantovich from Virginia Fusion to discuss the Pantovich property application. I did want to alert my colleagues. About a half an hour before the 4 o'clock meeting started today, my chief of staff discovered what we think is a fairly significant error on page 119 of the CPAM that was approved on consent tonight.

[03:00:21] And I just want to let my colleagues know it's a fairly complicated paragraph trying to capture the interim policy that we have for not collecting capital intensity factor, regional transportation, and transit fees for attainable housing. Stop his time, because I don't want you to use your time up.

[03:00:38] So with apologies, I'm going to stop your timing because you were not here. When we did that motion, it was the revised motion as provided on the dais, and it's because you had already caught that. And so what we passed was the revised and corrected motion because you had caught it already and told staff about it.

[03:00:57] And so is that not correct? So we've already handled that in the consent agenda. We did a revised motion. It is corrected because you caught it, and we corrected it earlier. Okay. Thank you, Madam Chair.

[03:01:13] Is it now that we absorb capital intensity factor regional transportation and transit for all attainable housing up to 100% AMI? Because that's what the interim policy was intended to do. I'm going to hand you the policy because you don't have time in a minute and 29 seconds.

[03:01:34] You can read it. If you think it's something still incorrect, we can come back and discuss it. But I don't want to take your minute and 29 seconds up. I appreciate that. But I do think we got it all. Okay. Thank you very much. You're welcome. Finally, kudos to Supervisor Briskman.

[03:01:52] She's changed my mind. When I first agreed with what I thought was the modified, is it 2A7G program, 2A9G program, it was explained to me that it's only individuals who have been put into the adult detention center accused of a crime.

[03:02:09] They do a background check to find out if they are in this country legally. Since that time, since we started that very limited program, the abuses of ICE nationwide have been manifest and egregious. And I agree with Supervisor Briskman.

[03:02:25] They are simply charging people to charge them with absolutely no due process so that they can basically detain them, make them disappear. And I agree with Supervisor Breastman. I don't want any part of that program. I don't even want the whiff of that kind of illegal conduct by ICE anywhere near Loudoun County.

[03:02:44] So I am in complete agreement with your conclusions on that program. Thank you, Madam Chair. Thank you. I don't think ICE can charge. So a couple of things. One, we're going to do the motion for road improvements, but once again to the Keiko family, thank you for coming tonight, and we do extend our sincerest sympathies.

[03:03:05] And I heard you and took notes about the road improvements and all the discussions we had today. I heard you. I took notes. To wade into very carefully the issue of the basketball team, my sons both played in that league.

[03:03:23] My husband coached in that league, and my son was a ref in that league. I know that league very, very well. It used to be, I'm not sure what's happening today, that the refs got a lot more than just cursory training on how to be a ref.

[03:03:40] Ms. Glass said that she's happy to meet with Mr. Torpy or someone. I've already done that. I watched the videos, and I've already done that. I already know that the coaches have been, or rather the refs have been called to a meeting. to have a discussion about what appropriate reffing looks like what should be called and what should not be called mr letourne made the statement that he understands parents shouldn't go on the floor even when they're frustrated i agree parents shouldn't go on the floor when they're frustrated i did not hear parents say they were frustrated i heard the parents say they were scared for their child's safety which is not the same thing as being frustrated no one

[03:04:19] believes parents should be on the floor it does cause confusion but there is also a place where when you go to a basketball game and a rugby game breaks out that maybe we have to take a look at what's going on and so the talking to the refs who really have control over the game and over the floor is the most important thing that can happen and I took that up with Mr. Torpy and that has happened and will happen again and already and I want to say that because

[03:04:55] you know I do hear I absolutely hear the message given to young people that something happens in the game and the game shouldn't be forfeited I hear all that I hear all that I was an athlete in school myself it was really good too I was an athlete in school myself however my bigger issue is safety when When people are, when things like that that happens, happens, you are lucky that it's only a busted lip or a swollen eye, because it could have just as easily been a concussion

[03:05:28] or something worse, and we cannot turn a blind eye ever to the safety of everybody in Loudoun County. So I just wanted to say that I heard and I understand. I also will associate myself with Mr. Sains' comments, because I did hear that.

[03:05:45] I was going to say those words myself, what is going on in this country right now. If ICE, I want to say it's not American, but unfortunately, it is absolutely American, and that in itself is the problem. So I want to associate myself with some of the comments that have been made here tonight.

[03:06:04] Everybody hang on. We're going to do one item. It's going to be quick because Ms. Glass is going to go straight to a motion, and then we're going to take a break. Ms. Glass? Thank you, ma'am. We're doing item number. With item number, is it? It is item number 13.

[03:06:21] It could be 13. 13. Item number 13, can you go fit your motion for us? Yes, Madam Chair. I move that the Board of Supervisors direct staff to identify the scope, cost, and funding sources to perform a transportation safety study as described in the January 21st, 2026 Board of Supervisors business meeting action item and return to a future business meeting with recommendations.

[03:06:43] Second. Sorry. It's county wide. I'm taking that second. Madam Chair, you can. Madam Chair, I'll give you that. Thank you. Thank you, Mr. Kirsten. I appreciate it. Discussion on the motion? Thank you, Madam Chair. This initiative is a transportation safety study of most of the public streets surrounding the Ashburn Metro Station.

[03:07:02] The communities around the Metro Station are designed to be dense and transit-oriented, specifically to get people out of their cars, nor to their feet, buses, bicycles, and scooters. As these communities around Metro build out, we want to continue to evaluate the safety of the streets as more and more people use them.

[03:07:24] For the last year or so, I've been working with VDOT to make piece-by-piece improvements to many of the areas that have been brought to my attention by community members. However, working with these improvements have been tedious as VDOT policies must be met.

[03:07:40] My hope by DTCI performing corridor studies on the roads is that we can incorporate multimodal infrastructure, crosswalks, and four-way stops that can be examined in a comprehensive way that is ideal for the whole area around the station.

[03:08:00] I have recently learned about an initiative around the country called Vision Zero, which is a movement for localities to adopt policies to achieve zero roadway and pedestrian deaths. Loudoun recently got a federal grant to explore utilizing this program in our county, and I'll be thrilled to see the outcome when the review is complete.

[03:08:25] Understanding that the car is not king, especially around the metro stations, is the only way we will design safe and enjoyable communities in our county. Thank you, Madam Chair. Thank you. Any other discussion on that item? Mr. Turner?

[03:08:42] Thank you, Madam Chair. Obviously, support this makes a lot of sense. The most recent fatality occurred in my district, and I've had long conversations with my team and my staff. I am going to talk to Mr. Hemstreet on our next meeting that we have together.

[03:09:00] I may seriously consider submitting a BMI whereby we have a template for crosswalk, road, access, safe passage template that is common and required around all schools within a certain radius.

[03:09:35] I think, I could be wrong, maybe that already exists, but I think we try and do this in a piecemeal fashion to fix specific problems, and I think it is well within our capability to design a safety template within, say, a half a mile or a mile of a school, whereby the crosswalks and the roads and the lighting and everything else has to meet exact standards for each one of those schools. So I'm going to do some more research, do some more digging, and find out how close we are to that. My expectation is that

we're not that standard, but that each school will have to do one or two things to bring them up to the new county standard if we do that.

[03:09:54] I'll talk further with Mr. Hemstreet about that. Thank you, Madam Chair. Thank you. First of all, I am very big on getting facts before anything else. And the most recent accident is god-awful tragic, but the investigation hasn't been done yet, so we don't know what happened.

[03:10:14] And I do want to see – it's hard to make decisions of what we should do different. Clearly, something should be done, but it's hard to make the decisions of what that is until we have all the facts. And I'm speaking just to the most recent accident over near Stonebridge High School. For some of the other incidents, we do have the facts, and we do know what has happened.

[03:10:35] we think we know. And I think it is a combination of people who were driving too fast, possibly distracted driving at times. I think it's a combination of a lot of things. And as I just said during my board comments, no matter what the issue is, my number one issue and my number one job to some degree as county chair is safety, the safety of our citizens. So whether Whether there are citizens who are driving, citizens who are walking, citizens, no matter what, citizen safety has to be the, it is the guideline by which I make many decisions on this board.

[03:11:14] So I am happy to support this motion, but I also want to, I don't think, to Mr. Turner's point, we should do one-offs. We should maybe find out just kind of in a more holistic, use an analogy of groundwater way to find out what is going on. This is also the reason I do not want the General Assembly to begin to do land use and zoning from Richmond because when they start putting down homes that we have yet to approve and there's no infrastructure for any infrastructure, you're going to have more

[03:11:50] of these issues because homes will be put down before the necessary infrastructure is in place. So once again, it is a reason to keep local zoning and land use in place. But I am happy to support this, and I do want to see the investigation on the last accident.

[03:12:11] I don't think they're all for all the same reasons, and so I don't know if I want to put everything in one box. And I am a big person in getting that data and facts, and so I want to look at those things separately. Ms. Glass, would you like a closing? Yes, Madam Chair, thank you. I asked my colleagues for your support in this initiative, and when the time comes to fund improvements, I also want to thank residents of the Westmore and Metro Wall communities, especially Ms. Mallory Johnson, who spoke earlier this evening.

[03:12:40] Your engagement with me on which roads are of most concern of residents, that's invaluable. I also, again, want to express my condolences to the Kakel family, who was killed by walking near the Ashburn Metro Station on December 1st.

[03:13:02] Alyssa's sister, Ms. Sarah Shoulders, and her brother, Paul Kakel, thank you for coming out and speaking tonight. It really meant a lot to hear your voice today. Thank you for your courage in working with me on this initiative and for your advocacy for improvements for pedestrians.

[03:13:22] Thank you, Madam Chair. Thank you. Ms. Glass made the motion. I second the motion. All in favor, please say aye. Aye. Any opposed? That motion will pass 8-0-1 with Ms. Umstead off the dais. We're not going to do closed sessions right now because both the closed sessions are going to take more time than we can do on a break.

[03:13:38] But I do just want to take a quick break and then we come back. We don't have too many more action items to go, but we will take a break and come back and do appointments, and then we will finish all the action items. So let's take 10 minutes.

[03:35:02] Okay, everybody, we are back. Thank you. We're going to do – I'll let you guys take a second to make sure you get your nominations ready, and we're going to do an item and then come back and do nominations. We'll do our number seven, Department of Planning and Zoning work plan.

[03:35:20] Will all the staff please come to the table, please? And actually, I guess you're just going to come to the table and stay here for the rest of the evening, huh? That's what it looks like, Dan. Yes, ma'am. You're just here with us.

[03:35:44] Okay, hold on, let me just get here.

[03:36:00] Okay, it is 10 slides. A lot has happened since last we've met. I wouldn't mind seeing the slides myself. I don't think it's going to take very, very long, but we're ready when you are.

[03:36:17] Okay. Well, good evening, everyone. I am Dan Galindo, the Director of Planning and Zoning, here to present our quarterly Department of Work Plan update. We were last before you in October of 2025 and in July before that. We present three work plans in the tables and in the item, starting with the ZOAM work plan for our zoning ordinance amendments.

[03:36:40] We are working on data center standards and locations phase two, and actually the project team met with members of the chamber's data center subcommittee this afternoon before the meeting to start holding a listening session. We've offered the same for the data center coalition, but they've actually asked us to wait to come to them whenever we have some draft language for them to actually sink their teeth into. The one thing I wanted to highlight on this item is that the estimated completion date has slid by a quarter. Whenever we first brought the project before it was broken into two phases

[03:37:14] to the board, we had already secured a purchase order with our task order consultant WSP at that time. With the change from breaking the project in the phase one and two, that purchase order kind have sat there waiting for phase two and gotten stale and procurement had advised us to go ahead and let go of that and use the new contract that we now have as of the beginning of this year so we are finalizing an updated scope with them for that. They are doing what I would argue is probably the most important piece of this which is looking at noise and how we might better handle that and

[03:37:49] regulate it so I did want to highlight more to that slide in time. Our second priority is the Western Lab Rural Uses and Standards, that's ongoing. We will be at TELUC tomorrow and again next week, trying to wrap those sessions up here in the first few months of the year.

[03:38:07] For our rewrite adjustments number one project, our team's made a lot of headway in the past, really just the past few weeks. We do think that we are gonna use some of the consulting team from WSP to help us on at least one chapter to try to wrap things up a little bit more quickly.

[03:38:24] but we believe we are on track to still working towards a summer adoption of that ZOAM. For the floodplain overlay district, an item was brought to you somewhat related to that by the Department of Building Development recently, but otherwise, no significant updates.

[03:38:41] Sorry, there we go, too far. No significant updates on that item at this time. For number five, for the Route 28 Improvement District abolition, that was something that was added to the work plan when we

were back with you in October.

[03:39:01] There's no updates written into the item, but I will say that just in the past couple of weeks, we have talked a lot with the county attorney's office, and we do think that we have our preferred option identified. So we plan to be back in front of you within a month to two months with Arroyo to work toward bringing those remaining properties under the 1972 zoning ordinance firmly under the current zoning ordinance in anticipation of the abolition of that district.

[03:39:30] For community planning initiatives, we've talked about one and two because they cover both. The 2024 general plan review was what was adopted earlier today. And so Vice Chair Turner, I know you had spoken about that. If you do think there's anything remaining from that revised motion, please let us know. Our fourth priority is the electrical infrastructure CPAM. Phase one was at public hearing with you this month. We'll be back next month with hopes of- I'm sorry, can you go back to the source water protection? I just took a little- I may not have actually said anything about it. It's still sitting there sixth in line

[03:40:06] it has been for quite a while. Okay okay all right I didn't miss it I thought maybe I missed something okay okay. So phase one of the electrical infrastructure CPAM we hope to adopt next month and then we are slowly beginning to work on phase two and we'll bring that back to you later for check-in later this year and then for adoption next year. The countywide transportation plan CPAM will be at Transportation and Lane News Committee tomorrow night to talk about that project plan. We've also been holding additional briefings this week. I know we're sort of running out

[03:40:44] of time, but if anyone's interested in talking with any staff related to that plan, we can definitely try to find some time for you tomorrow. Please let us know or you can respond to the email that was sent out by Shireen D'Arazio about that plan as well. Let me just interrupt you to say any member of TLUC, I think it would be a really good idea if any member of TLUC takes that update because it'd be a good idea. If you haven't taken it and you're in T-Log, maybe think about doing that. Thank you. We just spoke about Route 28, the Village Mall area plans, as we had two speakers talk about. We are happy to finally have our task order

[03:41:22] consultants firmly on board. We've brought on the Berkeley Group, which is a smaller regional firm, as well as WSP, again, who is a larger national engineering firm. They will be helping us do a number of different things, but we definitely needed them on hand to help us work on these small area plans.

[03:41:38] There are gonna be a lot of work involved. And we just did our first kickoff meetings with both consultants last week to talk about a number of things about how we're gonna handle the contracts and some of our upcoming projects that we're anticipating working on. And we will be getting back to them shortly about building up scopes for the small area plans and others that we will be kicking off later this year.

[03:42:04] Loudon's Trails and Waterways, CPAM. This was added also somewhat recently, and this is mainly an effort to try to incorporate more of the LPAT plan that was adopted by the board, actually not that long after we adopted the comprehensive plan, but LPAT was not adopted as part of the comprehensive plan, and therefore many of the projects, when they've actually gone to implementing them and putting these trails in place of required commission permits, this effort will be to try to minimize the need for that as much as possible.

[03:42:34] Something else we anticipate kicking off later this year. And then community-scale solar facilities and source water protection, again, are not things that we're anticipating starting in the near future, remain on the plan. And now that we do have the task order consultants online, it's one of the things that we're thinking about doing is having them do at least a little bit of preliminary work on some of these that have been hanging out on the work plan for a few years to give us a good base to start from once we get to them, hopefully in the near future. For our historic community planning initiatives,

[03:43:09] Preservation Equity Initiative Phase 2 is ongoing, and that one at this point, given board direction, now incorporates a lot of sort of sub-components. We have the three National Register nominations that the board has directed us to do for Watson First Baptist Church, Howardsville, and the Village of St. Louis.

[03:43:25] All three of those are somewhat in the works. Watson, I believe, is the only one that's formally kicked off, but Howardsville and St. Louis will be initiated in the near future, And the timelines shown, again, are, we think, relatively accurate for how long it will take to accomplish each of those.

[03:43:43] The courthouse grounds, path of freedom, and the heritage preservation plan are not things that we currently have been anticipating starting in the near future. With the heritage preservation plan, however, I will highlight, and it was highlighted in the item, that the Heritage Commission has encouraged the board to prioritize that.

[03:44:03] It's listed as the third priority here, not because of its lack of importance, but it will be a large project to essentially rewrite most of that document that has not really been touched since 2009. It's definitely something that we need to do, and staff has been talking internally in the past couple weeks about our capability of picking that up and starting it sooner than later.

[03:44:25] And I think from talking with the consultant teams last week, there is an opportunity for us to use the historic preservation team and Heidi Sieben-Tritt's team to run this instead of the special projects team that the board funded for us that's going to be running a lot of these other ones.

[03:44:41] So we may be able to bump that up perhaps with the next work plan update. As typical, our recommendation is to approve the current list of projects in Tables 1, 2, and 3 of the item. However, if there's anything that the board would like to prioritize or obviously anything that you'd like to discuss, I'm here for any questions.

[03:44:59] Thank you. And I think we can probably do questions inside of a motion. Mr. Crony, as Chair of Tulek, would you like to make the motion? Sure, Chair Randall. The motion is on page 17 of the item. Page 17.

[03:45:20] I move that the Board of Supervisors approve the current list of projects listed in Tables 1, 2, and 3 on the Department of Planning and Zoning Work Plan, as identified in the January 21st, 2026 Board of Supervisors Business Meeting action item.

[03:45:43] Second. Motion is made and seconded by Vice Joe Turner. Discussion on the motion, Mr. Crony. Yeah, I just want to thank Mr. Glendo and his team for the hard work that you put into this planning and zoning work plan. I know you guys are definitely stretched with how many projects we have ongoing in the county, And I appreciate you giving updates.

[03:46:10] I know the community is very interested in the data center, particularly the data center phase two. And I'm glad that you brought up that you will be addressing noise because we heard some speakers tonight bring up noise and the need for noise monitoring.

[03:46:27] I don't know if there'll be noise monitoring, but we do know tonal noise needs to be addressed differently because it's really not addressed by our existing noise standards. So I look forward to getting that in place. And thank you so much for your help with the Western Loudon rural uses and standards.

[03:46:48] That will hopefully be out of TLAC shortly and moving on. I do have a question. Can I ask a question? Yes, of course you can ask a question. Okay, thank you. so um my question is about st louis so we approved the st louis small area plan on september 10th 2025 when um does dpdpz anticipate starting a zoam to implement the zoning changes in the village to match the small area plan that is a good question um we have a number of items that i think are kind

[03:47:25] of collecting alongside the adjustments ZOAM and so what we may propose to you in the near future is sort of a project for ZOAM sort of like the general plan review that we just did where we collected like five or six things that the staff had been witnessing for the past five years kind of grouped them together and moved them forward. I think we may do some of the St. Louis ZOAM pieces like that along with some other things that we've been working through to try to handle a collection of things at once that in and of themselves may not uh be a a full zone with the scope of some of the other ones we have but are still vital things that we obviously want to

[03:48:00] implement okay so you you don't need to add it to the work plan or you would we we will um i'm i would like to get that collection together and then bring it back with a future work plan to present it to the board okay that would be great because i know st louis has been asking what's the next step and i mentioned as i am so all right thank you so much dan i appreciate it and your hard work. Thank you. Thank you. Mr. Kersner. Yes, so thank you for coming and presenting this. I had some follow-up questions on the Village Area Small Plan, and if you mentioned it, I got a little distracted. I was reading something in the packet. Can you just kind of give me an update in terms of

[03:48:39] where we are? I mean, I know we don't have a completion date at this moment because it's TBD, but obviously at some point, since it's third from where we do have an estimated completion date, We at some point will have a little better idea when that's going to get done just as things clear off and are getting done.

[03:48:58] So not only for my own benefit, but my colleagues' benefit, and then there were some questions during the public hearing. So we have 16 villages that will at least potentially be a part of that effort, depending on if the villages want to cooperate and work towards one.

[03:49:15] We needed the consultants on board in order to have the extra capacity to handle that. And so I think later, probably around the time that we bring the next work plan forward, we are hoping to have scoped out the framework, the template, so to speak, of what each of those small area plans will kind of be built off of.

[03:49:35] Obviously, we're going to allow each of you to have some changes in what that template is, but kind of the meat of what we anticipate being in each document. Have the scope worked out with one or both consultants, depending on how much capacity we think we have to move this forward.

[03:49:50] in the near future but I think by the spring we will be ready to have something in front of you as a project plan to help kick off those first few village plans and at least a tentative plan for how we will address those that are later on down the list. That's great. Will, is the idea to have one consultant for all of them or a separate consultant for each of them?

[03:50:10] Well, what we've talked about with both of them last week is having a sort of a package of probably three villages that would be part of a single scope that that consulting team will work through. Got it. If we have the capacity, in addition to other projects we have ongoing at different times, we may be able to have both work on different groups.

[03:50:30] I do not think that we will be at a point where we can do that this year, but potentially as things get done later in the year, beginning of next year, that's a possibility. All right. Thank you very much. Thank you. Mr. Vice Chair Turner. Thank you, Madam Chair. Source Water Protection, CPAM, and ZOEM has been floating around in the TBD zone for six years with no prospect of ever coming out of the land of forgotten fruit.

[03:50:56] Is there any, as I remember, as I remember, my intent was to prohibit construction within 500 feet of our waterways. Is there any mechanism whereby we can achieve that result? Or, I mean, the purpose is to, all of our waterways are impaired to some level or another.

[03:51:18] Is there some other mechanism other than ZOAM CPAM that we can somehow increase the repair and buffer or do something to affect, to adjust, to address the impairment in our waterways? And that's what it was. But, I mean, it's going nowhere, and I don't blame you a bit.

[03:51:35] I know you guys, it's a priority thing, and I know that it's always going to be at the bottom of the priority list. And yet, we're sitting here with impaired waterways. and I feel like we ought to do something. Any suggestions at all? I mean, you can talk offline if you want to, but I'm just, I'm thinking it doesn't really do anybody any good other than make you feel guilty that it's sitting down there in TBD forever and ever.

[03:51:54] Well, part of the reason that that one has remained separate instead of potentially being packaged with some of the other various ideas we have is that increasing that buffer so substantially is going to have major impacts on development rights as well as nonconformities, and so we're going to need to do a lot of background research along those corridors to see what those impacts will be in order to really give a good recommendation to the board.

[03:52:20] So it will require, if it's to be regulatory, which I think was your intention, it will require a ZOAM of some sort. By doing things like the Riverstream Corridor Resources, the RISCR, it's already in the ordinance. Some of that gets at the same kind of issues, but to increase it to the extent that you're talking about, it's still going to require a ZOAM, whether it's its own separate project or it's in combination with other things we're looking at.

[03:52:46] Let me ask this real quick because you just had an idea with something you said. I know we have a Goose Creek water project going on right now to measure water purity of any tributary emptying into Goose Creek. What if we required any structure within 500 feet to have an on-site water quality monitoring system of some kind and then establish some limits?

[03:53:09] Is that an easier way to go about it that wouldn't require zoning ordinance change or CPAM? That arguably probably goes beyond what you would incorporate within a zoning ordinance. The mechanism to require that I think would be something that we'd need to talk through.

[03:53:24] Okay, let's talk some more and see if we can't do something to ease that, move that forward. Thank you very much, sir. So Mr. Turner literally asked the exact question I was going to ask without the snazzy new idea, but he asked the exact question I was going to ask.

[03:53:41] Because, I mean, when you talk about source water, I'm not sure how it becomes not a priority. And so I'm a little confused by that. But he did ask the question, and you gave me the answer, so I'm good. Mr. Crony, I'll go back to you.

[03:53:59] No closing. Okay. So Mr. Crony made the motion. I second the motion. All in favor, say aye. Aye. Any opposed? That motion will pass, 702. Ms. Umpstead and Ms. Brixman are off the dais. Before I do item 8 or 11, I think, is there any, is anybody here for item 11? Are they left already? You're here for item 11? It's the, I'm sorry, let me try. Is anybody here for item 8, the Cool Springs item? I did not think so. So let's go ahead and do item 11 right now so we can get you all out the room and we'll go back and do item eight.

[03:54:39] Let's do the pentopic property item right now. So if you want to come, well, no, you're not coming to the table. It's not a come to the table day. But we'll do your item right now, though. Okay, everyone, we'll do item 11 first. Supervisors, while we're getting ready for item 11, it is possible, probable, who the heck knows, that we could get snow Sunday.

[03:55:04] We have no idea. Really, we have no idea. Well, we don't know because the snow line's moving. We don't know what we're doing. We don't know if we're going to get snow, sleet, ice. We don't know. But on the possibility we're going to get snow and get a decent amount, if it's on the higher end of the snow, it could be as much as 15 inches.

[03:55:29] It could be. If it is that, then we probably will not be dug out by Tuesday. Thus, we're going to take the TLUC meeting that was scheduled for the 27th and move it to the 29th.

[03:55:47] And so, TLUC will not be next Tuesday. It will be next Thursday instead. And even if we don't get snow, we've now made that decision. And so, just to put that out there, on the possibility, probability, whatever, of snow, We're moving the 22nd PTLUC meeting to the 29th, okay?

[03:56:09] No, yes, to the 29th, okay? At 5 p.m. At 5 p.m., right here, okay? Madam Chair. Yeah? I just looked it up. Artificial intelligence says we're getting snow. I just want to know. Sure. I will believe 15 inches when I see it.

[03:56:28] I don't, what we're getting, and then the sleet line will come through. Not as much snow, but then we'll get sleet, and then we'll be, which is worse. so so we'll see what we get we'll see what happens but something's gonna happen we think something's gonna happen where we think so let's go to item 11 please exactly

[03:56:55] sure yeah between one and 18 inches literally that's what it's saying between one and 18 inches is what we're gonna get so we may or may not be closed at all next week he made my point exactly like literally exactly between between one and 18 all right we're ready when you are good evening

[03:57:33] my name is christian maldonado with the department of planning and zoning here to present the application for panovich property rezoning in the interest of time staff can skip forward to updates unless the board feels like we need to go through the location i just need the updates you guys are guys good with the updates i just need the updates okay since the december 10th board public hearing the

applicant has provided revised commitments to building height the landscape buffer along briarfield lane and has proffered out additional uses the applicant is proposing two development options the first one is a one building option with the maximum height of 45 feet

[03:58:09] the second development option which contains two buildings previously proposed to limiting building height to 45 feet within the first 200 feet from the briarfield estates property with a maximum of 65 feet for the remainder of the property as published in the original board business meeting staff report the applicant has since made revisions to this development option and is now proposing the building to the east be limited to a building height of 45 feet and the building to the west be limited to a building height of 65 feet as published in the

[03:58:46] supplemental board business meeting staff report no other changes are proposed whoa whoa whoa what did i just miss i thought something went down well no i don't know just so it went from it went from what to what to what it is what did it go from what did i miss i am looking but the image here that's on the slide is what was proposed in the original staff report so you see that the little blue. So it went from 65-65 to 65-45? Yes. Yes. Is that right? So this is the original 45 starting

[03:59:25] from the east to 65 towards the west and now it's straight 45 for the one building to the east and the 65 to the west. I'm sorry like I'm a five-year-old do it again. I'm sorry I'm sorry I'm sorry but. No you're fine. So there's two building options or excuse me there's two buildings depicted in this graphic. The first one is to the west, is that smaller square that says 65 in the

[04:00:00] middle. The second building is a combination of the purple and the light blue. Oh, okay, gotcha. I'm with you. So it's, okay, okay, I wonder, okay, all right, gotcha. So it went from 65, 65, a little bit of 45, to 65, all 45. That's correct. I gotcha. All right, thank you. All right, wonderful. Okay, thank you. As for the landscape buffer along Briarfield Lane, the applicant is committed to providing a six-foot-tall berm within the 75-foot buffer, and plant Leland-Cyphus trees.

[04:00:34] The applicant has also proffered out additional uses, shown in green, including contractor with use limitations, public service center with outdoor storage, heavy vehicle repair, and vehicle service station. Staff continues to identify an outstanding issue with land use and compatibility.

[04:00:52] The suburban neighborhood place type does not anticipate the development of industrial uses as proposed. The applicant continues to proffer out several industrial uses that would be incompatible with the place type as listed here. Staff continues to recommend the applicant proffer out flex building, contractor, utility-scale energy storage, public service center without outdoor storage, and vehicle sales and/or rental.

[04:01:20] Staff cannot support board approval of the application as it remains inconsistent with the expected land use guidance and development pattern of the place type. Staff is happy to answer any questions. - Okay, thank you very much. Mr. Crony, this is yours, right?

[04:01:40] Would you like to make a motion or not? I don't have any questions. Would you like to make a motion and then have a discussion in the motion? A discussion. Okay. Okay. So I move that the Board of Supervisors approve legy 2024-0026 Pontovec property rezoning ZMAP 2024-006 subject to the proper statement dated January 20, 2026 and based on the Planning Commission findings for approval provided as attachments one and four to the January 21, 2026 Board of

[04:02:20] Supervisors business meeting supplemental action item. Motion to be in second by Supervisor Kirschner. Discussion on the motion, Mr. Crony? So I worked extensively with the applicant to lower the height near Briarfield Estates and I want to thank the applicant for meeting with Briarfield Estates, that community meeting was needed, and I'm glad you did it.

[04:02:46] So the community had asked that it be 45 feet along Briarfield, along Lane, and I was really happy that the applicant agreed to do 45 feet for, if it's one building, it'll be 45 feet in its entirety. If it's two, the front portion will be 45 feet in front of Briarfield Lane and the back will be 65 feet away from Briarfield Lane near the closer to the IP districts.

[04:03:19] I want to make it clear that 85 percent of this area is non-residential, but I did care about taking care of the Briarfield Estates residents. So, you know, I worked with the applicant.

[04:03:35] We did proffer out, I wanna make it clear, data center and utility substation. So those two things are proffered out. And then I worked with the applicant to proffer out more spec uses that are incompatible with residential.

[04:03:55] And, you know, I was happy to see that the applicant was really willing to do that. They also did a six foot berm for the community. I know the community asked for that. And Leland Cypress tree plantings within the proposed 75 foot wide landscape buffer along Briarfield Lane.

[04:04:13] So that also will really help the site for the community with all the plantings. You know, I'm happy to support this. I think it's at a point where I believe it will not have as much of an impact.

[04:04:34] I do wanna let the board know that the elevation is approximately 10 foot lower than the surrounding area. So really 45 feet will be like 35 feet. So I do wanna let the board know that it's probably gonna look like 35 feet for the community because the elevation is lower.

[04:04:55] one out there and confirm that that it is at a lower elevation than you thank you mr letourno thank you madam chair so i'd like to acknowledge all the work that supervisor crony did to significantly improve this application and thank the applicant for that particularly on reducing some of the building heights and the buffering that said if you go to the the current supplemental um i'm stuck on the 65 foot building i i raised this issue extensively

[04:05:29] in the public hearing if if both these buildings were blue and this were both 45 feet i'd have no problem supporting this application and i said that i actually think the building height should be 35 feet but as supervisor crony said there's a 10 foot recession here essentially which makes this which makes 45 feet, I think, a reasonable compromise.

[04:05:50] And the reason I think that is because you have the daycare property that's over here, you have residential property here. We cannot change land use patterns if we keep allowing things that are not consistent with the land use patterns that we actually want.

[04:06:06] Under no scenario do I want a 65-foot building in this location. I understand behind it, we have part of a data center that is no longer permitted, and so we don't know what's gonna happen exactly with that. And then if you go back far enough, there would be a bigger data center building.

[04:06:24] But we don't want that in this area. That's part of the problem. So you can compromise to a point, but if I don't hold to the standard that I've been calling for, which is a lower profile project here, then our word isn't worth anything.

[04:06:43] So the other factor is when you look at what the reasonable actual economic opportunities are here, they're all achievable at a lower building height. We have tremendous need for flex products in this county, and the biggest need is on the lower profile flex type of industrial that we have at Arcola Center, that we have in Ashburn, that we continually see very, very low vacancy rates on. So I don't believe that asking for 45 here is really disadvantaging the applicant much.

[04:07:17] I believe that that's what the realistic opportunities are anyway. The suburban neighborhood place site has a maximum building height of 48 feet. So again, when we look at policy, so truthfully, if this were blue, it was 45-45, I'd be a yes vote, even though it's a conversion because I do understand how difficult this area is and it's reasonable for the applicant to take these steps.

[04:07:38] But there aren't any uses at 65 feet that I think are appropriate here. And so, therefore, unfortunately, I cannot support this motion. If it does not pass, I would be more than happy to come back and support it at 45. Thank you. Mr. Sainz. Thank you, Madam Chair. What can they do in the 65 building by right?

[04:07:59] I have a hidden slide of uses that would be permissible by right. Or let me rephrase it. What can they do in the 65 that says it's approved and or by right?

[04:08:15] Just out of curiosity. so the remaining incompatible use that is listed in the staff report in our materials is flex building that would be permitted by right so that could be one of the uses that could go on the property in addition to those listed here okay um all right and then what about the 45 building what's what's permitted there if this is approved that would apply as well probably as well that's

[04:08:50] Okay, and Max, do the Supervisor Tocconi a question, Madam Chair? Yes. Supervisor Tocconi, did the applicant give any indication is what the plan I'm putting in these buildings to you? You have to put your...

[04:09:07] Sorry. I apologize. No, I think they just wanted flexibility. Okay, but they have proffered out data center substations, and can gas turbines be permitted in this land use? not without a special okay thank you thank you mr kirschner thank you madam chair um so i just want to make sure that front building because it looks different than what i have here the option the second option would be be able to be 45 and just the back building is 65 correct

[04:09:44] from briarfield that's correct with the updated proper correct okay just wanted to make sure i understood that and my is it your understanding also the briarfield estates or the community across they are they have signed off and are okay with this project this time the hoa has reached out is that your understanding that's my understanding are you aware of that the staff would go as far as to say that the building height was negotiated at their community meeting on december 4th of last month um but i'm not sure about a sign off or can't speak to that okay um i am glad i i i probably am going to vote yes for this um for a lot of the same reasons that

[04:10:20] supervisor letourneau mentioned um but i i do feel like that 65 foot building is so far back with that and the buffering and the fact that the community has said yes okay we're okay with this i actually i mean he does bring up a good point in terms of the um daycare and a couple of those over there it's not clear to me is there any buffering between that there's between that and the 65 foot building at all there may be buffering associated with the industrial parcel death zone there I believe there may be okay we

need to verify that okay um but I but I do I mean this is this is really what we want we want these applicants who are coming in um in these spaces

[04:10:59] working really closely with the with the supervisors from the district obviously having working with us as well and I feel like this applicant has done that and I think they've satisfied and I understand some of the concerns but I think they've ultimately satisfied um all the concerns that were raised I I understand why staff is not fully on board just because of the rules they have to look at, but it seems to be a pretty good project.

[04:11:24] It seems to be there's a lot of compromise they have, taking out a lot of different things that we are trying to prevent around homes. And I'm not sure it's really quite our role as supervisors to decide, So to necessarily decide whether or not the market is going to demand a specific use or not, I'd probably disagree with Supervisor Turner there.

[04:11:52] I don't know exactly what they would use it, but I'm sure they wouldn't be asking for 65 and going through all this if the 45 would work all the way across. But that is still an alternative that they can do. So I think I'm good with the application. Thanks. Thank you, Mr. Turner.

[04:12:08] Thank you, Madam Chair. there's a swale for both buildings it's 10 feet deep correct so that the actual perceived height from briarfield is going to be 35 feet and 55 feet correct approximately yes okay does that swale extend out to our cola mills drive so would the perceived height be 55 feet of the second building if you were standing in the daycare the child care center or would it look that it's 65

[04:12:35] feet just give me a moment i have some pictures okay there may be a minor gray difference but not is pronounced this from Briarfield Lane? That's correct. Okay. Yeah, I, Supervisor Kirshner kind of hit the nail on the head for me. I remember Mr. Pantovich first worked with me when I was a brand new supervisor six years ago, the whole soccer field engagement. And so this has been a long

[04:13:13] time coming. My inclination is if Briarfield Estates is okay with this, and it sounds like they are, then I'm probably okay with it as well. So I know the applicant has worked very hard to try and accommodate. I know the screening over on Briarfield Lane is going to be good. I don't think anybody in Briarfield Estate, frankly, is going to be able to see through the trees to see either one of these buildings. So I think I'm pretty good with this application the way it is.

[04:13:40] Thank you. Thank you. I will associate myself with Mr. Letourneau's comments. I think, First of all, Mr. Crony and the applicant, Mr. Pintovich, has been around for a long time doing this, and I do really appreciate this. But I will say we have land use patterns for a reason, and changing land use patterns has gotten us into some of the trouble we have right now.

[04:14:04] I mean, we're seeing things that they just don't belong. So, yes, things that have been proffered out that we don't want, but it's still not compatible with the land use patterns, which is why we did it in the first place, or we put it in the first place. The fact that they can still do energy storage utility scale, public service center without outdoor storage, vehicle sales and/or rental, those things are still issues for me.

[04:14:28] And I do not believe that this is, well, I believe this is not compatible with the suburban neighborhood place type. And the suburban neighborhood place type does anticipate primarily residential, and if we disturb land use patterns that are supposed to be residential, I do think we lessen the opportunity to get the needed attainable housing or just housing period that we need at every AMI.

[04:15:02] And so even if all the buildings were 45, I still would be a no because I think the land use patterns in this area are tough, but I think we have to keep these in place for a reason.

[04:15:21] So I have the utmost respect for the applicant who's worked hard on this for a long time and for Mr. Crony. I also find the times when communities finally say yes, it's because you're like, you know what, it's the best we're going to get. So it's not like communities are saying yes, we really want this with gusto.

[04:15:39] It's like, okay, fine, which also is something I hear. They hear like it's this or nothing, but truthfully, it doesn't have to be this or nothing. It could be something else one day. It could. That's why I, you know, so I respect the applicant, and I, gosh, no, respect the work that my colleague has done on this application, but I am going to have to be a no.

[04:16:06] Mr. Crony? Yeah, thank you, Vice Chair Randall. So I will say that next door to this property is proposed a million square foot data center, 70 feet high.

[04:16:24] I don't really think this is a residential area, and I know that the daycare supports this application, and the surrounding businesses support this application. It really isn't a residential area anymore.

[04:16:42] There will be a substation application across our Colon Mills Drive coming to the board for the Brambleton data centers. so this is largely an industrial area it's been industrialized and i think um you know the the property i i the applicants i i know that you guys worked hard on what could fit here and uh 45 feet is is a great compromise um for briarfield states you know to take care of the existing residential that's there.

[04:17:18] And I would say that the utility, the uses that Chair Randall brought up, they are special exceptions. So there's only the Flexum building is by right, but most of them are special exception. So the applicant would have to come into the board anyway if they wanted to do that use that we haven't proffered out.

[04:17:42] You know, I also want to make the point that they won't be going on, the traffic will not be on Briarfield Lane, it'll be on Arcola Mills Drive, so there's an entrance with a right turn taper into this development, into this site.

[04:17:59] So it won't, there won't be as much traffic on Briarfield Lane. So I do think the applicant has really looked out for Briarfield Estates, and I think this is probably the best use for this property and 45 feet I think is a good height. It'll be 35 feet when they, you know, for the community as far as the visual impact. So I hope, I want to thank the applicant and I hope my board members will support this application. Thank you. Great. So the motion was made by Supervisor Tacroni and seconded by Supervisor Kirschner. Are they able to say aye? Opposed?

[04:18:39] No. So that motion will pass, 4-3-2, with Supervisor Letourneau, Sains, and Randall voting no, Supervisor Umstead and Bricksman being off the dais, but that will pass. Thank you very much. All right, let's go back to item number eight, Village of Clear Springs. This was an item that was on consent earlier this evening.

[04:19:02] It was taken off consent because we did have one speaker on the item, and it is my policy to take things off consent if we have a speaker. But whose district is this, because we are going to go straight to a motion. Mr. Kirshner, you don't have a, it's in the package.

[04:19:20] Madam Chair, I will note that the speaker actually that was signed, that we thought was signed up, actually spoke on the work plan instead. I know, but, you know, I did absolutely, absolutely get that, actually. Yeah, it did.

[04:19:36] It did. Yes, I'm ready when you are, Madam Chair. I'm ready now. I move the Board of Supervisors to approve Leji 202500. 30 village at clear springs proffer amendment zcpa 2025 0006 subject to the proper statement dated january 8th 2026 and based on the findings for approval provided as attachments two and three to the january 21st 2026 board of supervisors meeting action item motion made seconded by

[04:20:11] supervisor glass uh discussion on the motion mr mr um kirschner no discussion anybody else discussion emotion seeing none all people say aye any opposed that motion will pass 702. next item the um item number 12 is the ashburn substation i do not think we're going to wait for a motion on this i think we want to have some discussion about this one just to make sure we all understand what's

[04:20:44] going on so this has this this presentation is a seven slide presentation does anyone need the presentation okay does anyone have any questions well I guess we are going to go straight to emotion right now then okay unless you want us to talk to you just some more Dan you want us you good I love talking to all of you, but if you want to let us go, we're happy to take it.

[04:21:18] Who, uh, Mr. Attorney, you intend to take this motion? Who's, uh, or Mr, uh, Mr. Leesburg. Mr. Attorney, want to make a motion? Please do. Unless you don't want to.

[04:21:34] I really would run it off. Okay, when they don't, okay, okay, I'll go to the motion. Let me go, let me just find, I thought, I thought you did. My bad. Um, okay. Loading.

[04:21:52] I got it. I got it. The board supervisors ratify LEGIE 2024-0038, Ashburn substation, CPMT, 2024-0008, subject of the commission permit dated November 6, 2025, and based on the findings for approval, providers attachment one and two to the January 2026 board supervisors business meeting action item.

[04:22:19] Second. Motion's made and seconded. From what I understand, if you look at the actual item, not the presentation, but the actual item, page three, this substation is within and on the same platter of land, correct?

[04:22:38] Yes, that's correct. Okay. Does the staff have any issues with this already? No. All right. Anybody else have any questions, thoughts? Mr. Turner? Thank you, Madam Chair.

[04:22:54] i'm pretty sure this is going to pass comfortably um i'm uh i'm going to vote no and i'm going to do it um frankly to send a statement to um uh those the powers that be with our our electric infrastructure in the county um i think this substation should go where it's going and i we it's absolutely essential for the aspen to gold and gold and mars mars a wishing star loop that's going out the data center alley the reason the reason i'm voting no is to make the statement

[04:23:30] that we need to start to think outside the box overhead transmission lines and more substations is the traditional answer to our power grid and i think we need to come up with a new answer so that's why i'm doing this so that i can make these comments and say i'm not voting no because i don't think the aspirin substation should go here or because there's anything wrong with this application, this permit. But I want the conversation to begin to go down new roads and new paths of what we might be able to do because Loudoun County's grid is facing

[04:24:10] unprecedented stress right now. My chief of staff found a finding in the most recent, I hope I get this right, the most recent auction for PJM bidders on the capacity of the grid, PJM has a standard for how much reserve capacity there needs to be on the grid, and they couldn't meet it with the existing auction. And I believe the finding actually used the word brownout or blackout.

[04:24:40] So we are in uncharted territory, and we need to start thinking differently. While I understand what's going on here and and this makes perfect sense i wanted to vote no so that i could get that on the record thank you madam chair so the problem with the respect for i sure turn the problem is what you just put on the record is correct and even if we wanted to vote no because of what you just put on the record we couldn't it wouldn't be allowed and so you're you're right you're

[04:25:17] thousand percent right but putting it on the record might indicate that we could do something different if we could do something different based on what you just said i wouldn't be voting for this but we can't and of course we loudon county has put it in the general assembly um a bill that actually might pass that it's going to get pushed back another way it's going to quit whatever that says that we can make some of these decisions based on our power grid and i hope that passes but right now it hasn't and so what we're doing right now by law is making the land use decision

[04:25:52] and so on the land use decision i i do not see a reason to vote anything but yes so okay um all in favor please say aye any opposed all right i think that's five two two with mr mr mr miss Glass and Mr. Turner feeling free to make a statement, even though the rest of us can't

[04:26:27] make that statement with them, and two of our other colleagues being off the dais, Ms. Bricksman and Ms. Umstead being off the dais. Thank you. I think that's it. I think we can now -- does anyone need a break?

[04:26:43] I think we're good. These two closed sessions are going to be long. If we need a break between closed sessions, maybe we'll do that. Nominations. Oh, nominations. Nominations. What? Did we do number 10? We did everything. Oh, you did number 10 already? Yeah, we did it.

[04:27:00] Nominations. I do have a nomination somewhere in my package somewhere. If you have nominations, put your light on, please. Nominations, please. Lights on. Ms. Glass? Thank you, Madam Chair. I nominate Ms. Tracey Reed as an at-large representative on the Housing Choice Voucher Resident Advisory Board.

[04:27:22] I nominate Mr. Martin Salton for a reappointment as an at-large representative on the Loudon Water Board. Is that a reappointment? Yes, Madam Chair. Okay, that's what I thought. Mr. Kirsner? Madam Chair, just a point of clarification.

[04:27:39] I have two nominations for the Economic Development Council that was requested by some folks from... It was requested that we get them on right away because they have some work to do, but I can follow the traditional method, but we would have to suspend the rules, I suppose.

[04:27:57] For the Economic Development Board, I would not allow suspension of the rules. Economic Development Council, yes. Okay, that's fine. And I understand that. I mean, I obviously have requested, but I nominate Stacey Metcalf as the equine representative on the Rural Economic Development Council, and I also nominate Andrew Crush as the protein production processor representative on the Rural Economic Development Council.

[04:28:21] And I would be happy to support both those people when we come back to the dais. Okay. Ms. Tocroni? Yeah. Thank you, Chair Randall. I nominate Martha Polke to the Rural Economic Development Council as the livestock representative. And then I have two of Supervisor Umstead's nominations, Candace Haney to the Disability Services Board and Evelyn Ingram to the transit advisory board as the local fixed route representative so those are for um supervisor

[04:28:55] um that's no it's fine i just i know one of them how many boards can people one person sit on because two okay uh no i'm thinking i'm thinking the other person but i'll i think i'll check with her okay mr saints do you have anybody you're good mine's not so we got time okay they expired in february but it's not till april okay i will nominate heather elzin to an at-large seat on the community services board all right haven't seen those mr vice chair turner will you please

[04:29:28] read us into closed sessions i give you guys like you know i move board of supervisors recess this public meeting and enter into closed session pursuant to section 2.2 3711 a3 of the code of

[04:30:08] virginia to consider the acquisition of a parcel of property for public use in the catoctin electric election district. I further move that the Board of Supervisors recess this public meeting and enter into closed session pursuant to sections 2.23711 A7 and A8 of the Code of Virginia to consult with legal counsel on the staff employed or retained by a public body regarding actual or probable litigation and a specific legal matter requiring the provision of legal advice by such counsel. Motion made and seconded by Supervisors. Who said that? Mr. Sainz?

[04:30:37] Discussion on the motion? All the people who say aye. Aye. Any opposed?

[04:30:41] We are in closed session.

[05:26:33] We are back and Mr. Turner is going to read us out of closed session.

[05:50:34] I move that the closed session be adjourned, that the Board of Supervisors reconvene its public meetings, that the minutes of the public meeting should reflect that no formal action was taken in the closed session, and further move that the resolution certifying the closed session be adopted and reflected in the minutes of this public meeting. Motion is made and seconded. All in favor, please say aye.

[05:50:53] Aye. Opposed? That motion will pass. 702. Would everybody please certify? Affirm. And I affirm as well. There is one more motion to be made. Mr. Laterno.

[05:51:13] Thank you, Chair Randall. I move the Board of Supervisors deny the Birnbaum dog-related claim for \$30,130 for injuries to his dog. Second. Motion is made by and seconded by Supervisor Kirshner. Discussion on that motion?

[05:51:30] No discussion. All in favor say aye. Aye. Opposed, and I'm going to abstain. I'm going to abstain. So that motion will pass with Mr. Rixman and Ms. Umstead off the dance, and Chair Render abstaining.

[05:51:48] I do believe that is it. I do want to say one more time that the TLUC meeting will be for next week, not for tomorrow. Tomorrow's TLUC meeting's on. TLUC meeting for next week will be moved from the 27th through the 29th because we're going to get somewhere between 1 and 18 inches of snow.

[05:52:10] 8 and 16 inches. Okay, at 5 o'clock. At 5 o'clock in this boardroom. I think that is it. I think that's it. And now we are adjourned. Did you get this?



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